

(2) Nothing in this Act shall be construed as prejudicing the right of any such company to alter its memorandum of association with respect to its objects in accordance with the provisions of the Companies (Consolidation) Act, 1908, or as preventing any such company exercising any powers which are merely incidental or ancillary to the principal business carried on by the company.

2. This Act may be cited as the Companies (Converted Societies) Act, 1910. Short title.

CHAPTER 24.

An Act to consolidate the Law relating to Justices' Licences for the Sale by retail of Intoxicating Liquor and to the Registration of Clubs. [3rd August 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

OBLIGATION TO OBTAIN JUSTICES' LICENCE.

1. Subject to the provisions of this Act, an excise licence under which intoxicating liquor may be sold by retail shall not be granted except to a person who holds a justices' licence granted in accordance with this Act authorising the grant of the excise licence to that person, and any excise licence granted in contravention of this section shall be void. Justices' licence required for grant of retail excise licence.

LICENSING DISTRICTS AND AUTHORITIES.

2.—(1) For the purposes of this Act, a licensing district is a petty sessional division of a county, and a borough having a separate commission of the peace. Licensing districts and authorities.

Where a county is not divided into petty sessional divisions, the whole county (excluding the area of any borough having a separate commission of the peace) shall be deemed to be a petty sessional division for the purposes of this Act.

(2) For the purposes of this Act, as respects a licensing district being a petty sessional division of a county—

- (a) the licensing justices are the justices acting in and for the petty sessional division ;
- (b) the confirming authority are quarter sessions ; and
- (c) the compensation authority are quarter sessions.

(3) For the purposes of this Act, as respects a licensing district being a borough—

(a) The licensing justices are—

(i) in a county borough, for all purposes, the borough licensing committee ;

(ii) in a borough, not being a county borough, and having the required number of justices, the borough licensing committee so far as respects the grant of new justices' licences and the ordinary removal of justices' licences, and for other purposes the borough justices ;

(iii) in a borough, not being a county borough, and not having the required number of justices, for all purposes the borough justices.

(b) The confirming authority are—

(i) in a borough not having the required number of justices, the joint committee appointed under this Act ; and

(ii) in any other borough the whole body of borough justices.

(c) The compensation authority are—

(i) in a county borough, the whole body of borough justices ; and

(ii) in a borough not being a county borough, the quarter sessions for the county.

The required number of justices in a borough is ten or more, all justices, whether disqualified for acting under this Act or not, being reckoned for this purpose, and the number being taken as at the time appointed under this Act for the appointment of the borough licensing committee.

(4) For the purposes of this section, the city of London shall be deemed to be a county borough.

(5) The justices of the county shall not have any power or authority as licensing justices in any of the principal Cinque Ports or in the two ancient towns, and in those ports and towns the justices of the port or town shall be the licensing justices, and the corporate and non-corporate members and liberties of any of those ports or towns, not being within the limits of a borough having a separate commission of the peace, shall be treated as part of the port or town.

Borough
licensing
committee.

3.—(1) The borough licensing committee shall be appointed by the borough justices acting in and for the borough, during the last fortnight in January in every year.

(2) The borough licensing committee shall consist of such number of borough justices as the justices appointing the committee determine, not being less than seven in a county borough, and not being less than three nor more than seven in any other borough.

(3) A casual vacancy arising in the committee from death, resignation, or otherwise, may be filled up by the justices by whom the committee is appointed.

(4) The quorum of the borough licensing committee shall be three.

(5) The members of the borough licensing committee retiring at the end of a year may be reappointed, and, if from any cause members are not appointed in any year to succeed the retiring members, the retiring members may continue to act until their successors are appointed.

4.—(1) A joint committee shall consist of three justices of the county in which the borough is situated, and three justices of the borough. Joint com-
mittee.

(2) The three justices of the county shall be appointed by the confirming authority of the county, and the same county justices may be appointed members of more than one joint committee under this section.

(3) The three justices of the borough shall be appointed by the borough justices.

(4) Where from any reason there are not for the time being three borough justices (being justices who are not disqualified for acting under this Act) to form the quota of a joint committee, the deficiency in number shall be supplied by county justices (being justices who are not so disqualified) to be appointed by the confirming authority.

(5) A casual vacancy in the joint committee arising from death, resignation, or otherwise, may be filled up by the justices by whom the member whose place is vacated was appointed.

(6) The quorum of the joint committee shall be five.

(7) The senior justice on the joint committee present at any meeting shall be chairman of the meeting, and, in the event of an equal division of the committee, the chairman shall have a second vote.

5.—(1) The compensation authority may, if they think fit, divide their area into districts for the purpose of their powers and duties under this Act as such authority, and in that case this Act shall operate as if those districts were separate areas for the purposes of those powers and duties under the same authority. Division of
area.

(2) Where quarter sessions have customarily been held separately by adjournment or otherwise for any part of a county, the Secretary of State may by order, on the application of the justices sitting at each such separate sessions, constitute for the purposes of the execution of the powers and duties of quarter sessions as confirming and compensation authority any part of the county for which quarter sessions are for the time being so separately held a separate county, and the justices usually sitting at those separate quarter sessions a separate quarter sessions, and make all necessary provisions for the administration of those powers and duties in such a case.

Committees
of compensa-
tion and
confirming
authorities.

6.—(1) A compensation authority may delegate any of their powers and duties under this Act as such authority to a committee appointed in accordance with rules made by them under this section, and, when the authority are the quarter sessions of a county, shall so delegate their power of determining any question as to the refusal of the renewal of a justices' licence under this Act and matters consequential thereon.

(2) The confirming authority of a county may delegate any of their powers and duties under this Act as such authority to a committee appointed in accordance with rules made by them under this section, and shall so delegate their power of confirming the grant of a new justices' licence.

(3) Any compensation authority or confirming authority who may appoint, or who are required to appoint, a committee under this section, may make rules to be approved by a Secretary of State, for the mode of appointment of those committees, and for the number, the quorum, and (so far as procedure is not otherwise provided for) the procedure of those committees.

(4) In a county the same committee may be appointed for the purpose of the exercise of the powers and duties of quarter sessions both as compensation authority and as confirming authority.

(5) The justices of any borough, not being a county borough but having a separate commission of the peace, shall be entitled to appoint one of their number to act, with reference to the determination of any question as to the refusal of the renewal of a justices' licence under this Act and any matters consequential thereon, on the committee appointed under this section by the quarter sessions of the county as compensation authority, and for those purposes any justice so appointed shall be deemed to be an additional member of the committee.

Power to act
by majority
and validity
of action.

7.—(1) Where under this Act any power may be exercised or any duty is to be performed by the licensing justices or by justices acting in or for a borough including a county borough, whether those justices are described as the whole body of justices or otherwise, that power may be exercised, and that duty may be performed by a majority of the justices present at a meeting assembled for the purpose.

(2) No objection shall be made to any licence granted or confirmed by the borough justices or by a borough licensing committee or joint committee under this Act on the ground that the justices or committee of justices were not qualified to make the grant or confirmation.

Power in
certain cases
for justices of
county to act
in borough
having sepa-
rate commis-
sion of the
peace.

8. If at any general annual licensing meeting or adjournment thereof or at any transfer sessions held for a borough or liberty having a separate commission of the peace, there is only one justice present who is not disqualified from acting under this Act, or no such justice present, any justice acting in and for a county adjoining the borough or liberty who is not disqualified

under this Act may act within the borough or liberty at the meeting or sessions for the purpose of any business which may be transacted thereat under this Act, any law, custom, or usage to the contrary notwithstanding.

GRANT OF LICENCES, AND GENERAL ANNUAL LICENSING
MEETING.

9. Subject to the provisions of this Act, the licensing justices may at their general annual licensing meeting grant justices' licences to such persons as they, in the execution of their powers under this Act and in the exercise of their discretion, deem fit and proper. Power of justices to grant licences.

10.—(1) For the purpose of granting justices' licences, the licensing justices for every licensing district shall within the first fourteen days of February in every year, hold a special session (to be called the general annual licensing meeting). General annual licensing meeting.

(2) The licensing justices shall hold a meeting at least twenty-one days before the general annual licensing meeting, and appoint the day, hour, and place at which the general annual licensing meeting is to be held.

(3) The licensing justices may at any general annual licensing meeting adjourn the meeting to such day and to such place within the licensing district as they think fit for meeting the convenience of persons intending to apply for justices' licences, and a day and place for at least one such adjourned meeting shall be so appointed by the justices.

(4) Every such adjourned meeting shall be deemed to be a continuation of the general annual licensing meeting, and shall be held within one month from the date of the original meeting; and the first adjourned meeting shall not be held on any one of the five days next after the date of the original meeting:

Provided that, where an applicant for the grant of a justices' licence has through inadvertence or misadventure failed to comply with any preliminary requirements of this Act, the licensing justices may, if they think fit, and upon such terms as they think proper, postpone the consideration of the application to a meeting to be held on a later date, and, if at that meeting they are satisfied that any terms imposed by them have been complied with, may consider the question of the grant of the licence as if the preliminary requirements of this Act had been properly complied with.

A meeting held for the consideration of an application postponed under this provision may be held if necessary after the date on which an adjourned general annual licensing meeting may be held, and as far as that application is concerned the powers of the licensing justices may be exercised at that meeting in the same manner as at an adjourned general annual licensing meeting.

(5) When the licensing justices have appointed the day, hour, and place of the general annual licensing meeting the

clerk shall within five days send copies of a notice of the day, hour, and place so fixed to the proper police officers, and those officers shall cause a copy to be fixed on the door of the church or chapel of any parish in the licensing district, or, where there is no such church or chapel, on some other public and conspicuous place in the parish, and the clerk shall also cause a copy to be served on every licensing justice, and on the holders of justices' licences in the district, and any person who has applied for a justices' licence.

The same procedure shall be followed as respects notice of any adjournment of a general annual licensing meeting, but it shall not be necessary to serve a copy of the notice of any such adjournment on holders of justices' licences or on applicants for justices' licences who are not required to attend at the adjourned meetings.

The copies of the notice to be sent by the clerk under the foregoing provision to the proper police officers shall, in the metropolitan police district and the city of London, be sent forthwith to the high constable, and the high constable shall, within five days, cause the copies to be fixed and served as required by that provision.

Provision for the case of applicants for licences who are hindered from attending general annual licensing meeting.

11. If an applicant for the grant of a justices' licence (including a grant by way of renewal or transfer) or for the removal of a justices' licence is hindered by sickness or infirmity, or any other reasonable cause, from attending in person at any general annual licensing meeting or adjournment thereof, or any transfer sessions at which his personal attendance is required under this Act or otherwise, the licensing justices, if they are satisfied (by evidence on oath if they think it necessary) that the applicant is hindered from attending by good and sufficient cause, may grant the licence, or authorise the removal of the licence, notwithstanding that the applicant is not present, and deliver any licence, order, or authority required to any person authorised by the applicant to receive it.

NEW LICENCES.

New licences and confirmation.

12.—(1) For the purposes of this Act, a new justices' licence is a justices' licence granted at a general annual licensing meeting otherwise than by way of renewal or transfer as defined by this Act.

(2) A grant of a new justices' licence by the licensing justices shall not be valid unless it is confirmed by the confirming authority.

Procedure on confirmation of new justices' licences.

13.—(1) An application for the confirmation of the grant of a new justices' licence shall not be heard until twenty-one days at least have expired since the date of the grant of the licence.

(2) Any person who has appeared before the licensing justices and opposed the grant of a new justices' licence, and no

other person, may appear and oppose the confirmation of the grant by the confirming authority.

(3) The confirming authority may award such costs as they think just to the party who succeeds in the proceedings before them, and costs so awarded may be recovered in the same manner as costs awarded on the dismissal of an information or complaint under the Summary Jurisdiction Acts.

(4) The confirming authority shall make rules as to the proceedings to be adopted on the confirmation of new justices' licences, and the costs to be incurred in any such proceedings, and the person by whom those costs are to be paid.

14.—(1) The licensing justices, on the grant of a new justices' on-licence, may attach to the grant of the licence such conditions, both as to the payments to be made and the tenure of the licence and as to any other matters, as they think proper in the interests of the public ; subject as follows :—

Special provisions as to grant of new justices' on-licences.

(a) Such conditions shall in any case be attached as, having regard to proper provision for suitable premises and good management, the justices think best adapted for securing to the public any monopoly value which is represented by the difference between the value which the premises will bear, in the opinion of the justices, when licensed, and the value of the same premises if they were not licensed : Provided that, in estimating the value as licensed premises of hotels or other premises where the profits are not wholly derived from the sale of intoxicating liquor, no increased value arising from profits not so derived shall be taken into consideration :

(b) The amount of any payments imposed under conditions attached in pursuance of this section shall not exceed the amount thus required to secure the monopoly value.

(2) The licensing justices may, if they think fit, instead of granting a new justices' on-licence as an annual licence, grant the licence for a term not exceeding seven years, and where a licence is so granted for a term—

(a) Any application for a re-grant of the licence on the expiration of the term shall be treated as an application for the grant of a new justices' licence, not as an application for the renewal of a justices' licence, and during the continuance of the term the licence shall not require renewal ; and

(b) Any transfer of the licence or special removal of the licence shall, subject to any conditions attached thereto on the grant, have effect for the remainder of the term of the licence.

(3) The amount of any payments made in pursuance of any conditions under this section shall be collected in the same

51 & 52 Vict.
c. 41.

manner as the duties on local taxation licences within the meaning of section twenty of the Local Government Act, 1888, and shall be paid into the Exchequer.

(4) A new justices' on-licence granted for a term under this section may (without prejudice to any other provisions as to forfeiture) be forfeited, if any condition imposed under this section is not complied with, by order of a court of summary jurisdiction, made on complaint, or, if the holder of the licence is convicted of any offence committed by him as such, by the court by whom he is convicted.

(5) On the confirmation of a new justices' on-licence, the confirming authority may, with the consent of the justices authorised to grant the licence, vary any conditions attached to the licence under the provisions of this section.

(6) This section does not apply to justices' on-licences for the sale of wine alone or sweets alone.

Notices
requisite on
application for
new licence.

15.—(1) A person applying for a new justices' licence must—

- (a) advertise notice of his application in some paper circulating in the place in which the premises to which the notice relates are situated, on some day not more than four and not less than two weeks before the application is made, and on such day or days (if any) as may be fixed by the licensing justices; and
- (b) within twenty-eight days before the application is made, cause notice of his application to be affixed and maintained between the hours of ten in the morning and five in the afternoon, of two consecutive Sundays, on the door of the premises, and on the door of the church or chapel of the parish or place in which the premises are situated, or, if there is no such church or chapel, on some other public and conspicuous place within the parish or place; and
- (c) not less than twenty-one days before the application is made, give notice in writing of his intention to apply for the licence to one of the overseers of the parish in which the premises to which the notice relates are situated, to the superintendent of police of the district, and to the clerk of the licensing justices; and
- (d) if the application is for a new justices' on-licence, not less than twenty-one days before the application is made, deposit with the clerk of the licensing justices a plan of the premises in respect of which the application is to be made.

(2) Any notice to be given under this section shall set forth the name and address of the applicant, a description of the licence or licences for which he intends to apply, and a description of the situation of the premises in respect of which the application is to be made.

RENEWAL OF LICENCES.

16.—(1) For the purposes of this Act, the renewal of a justices' licence means the grant of a justices' licence at a general annual licensing meeting by way of renewal of a similar licence which is in force in respect of the premises at the date of the application :

Renewal of
justices'
licence and
procedure on
renewal.

Provided that, where an application is made for the grant of a licence in respect of premises in respect of which a similar licence is not in force at the date of the application but was in force at the date of the general annual licensing meeting in the previous year, the application shall be treated as an application for the renewal of a licence, and the grant of a licence in pursuance of the application shall be treated as a renewal of the licence, if the licensing justices are satisfied that the applicant had reasonable cause for not making his application at the previous general annual licensing meeting.

(2) The holder of a justices' licence applying for the renewal of his justices' licence need not attend in person at the general annual licensing meeting unless he is required by the licensing justices to attend, and he shall not be required so to attend save for some special cause personal to himself.

(3) Subject to the provisions of this section, the licensing justices shall not, where the holder of a justices' licence applies for the renewal of his licence, entertain any objection to or take any evidence with respect to the renewal thereof unless written notice of an intention to oppose the renewal of the licence stating in general terms the grounds on which the renewal is opposed, has been served on the holder thereof not less than seven days before the commencement of the general annual licensing meeting.

(4) The licensing justices may, notwithstanding that no notice of intention to oppose the renewal of a justices' licence has been given, on an objection being made to the renewal, adjourn the consideration of the renewal to a future day fixed by them (whether more or less than one month from the date of the original general annual licensing meeting), and require the attendance of the holder of the licence on that day when the case will be heard and the objection considered as if notice to oppose had been given.

(5) Where the licensing justices, on an application for the renewal of an old on-licence, as defined in the Second Schedule to this Act, ask the holder of a licence to give any undertaking, they shall adjourn the hearing of the application, and cause notice of the undertaking for which they ask to be served upon any registered owner of the premises, and give him an opportunity of being heard.

(6) The licensing justices shall not, where the holder of a justices' licence applies for the renewal of his licence, receive any evidence with respect to the renewal of the licence which is not given on oath.

Restriction on powers of licensing justices as to renewal of old off-licences.

17. The licensing justices shall not refuse to an applicant the renewal of any such justices' off-licence as is described in the First Part of the First Schedule to this Act (in this Act referred to as an old off-licence), except on the grounds specified in the Second Part of that Schedule.

Restriction on powers of licensing justices as to renewal of old on-licences.

18.—(1) The power to refuse the renewal of any such justices' on-licence as is described in the First Part of the Second Schedule to this Act (in this Act referred to as an old on-licence) on any ground other than any of the grounds specified in the Second Part of that Schedule shall be vested in the compensation authority and not in the licensing justices, but shall only be exercised on a reference from those justices and on payment of compensation in accordance with this Act.

(2) In every case of the refusal of the renewal of an old on-licence by the licensing justices, they shall specify in writing to the applicant the grounds of their refusal.

Reference to compensation authority of questions as to renewal of old on-licences, and powers of that authority.

19.—(1) Where the licensing justices, on the consideration by them, in accordance with this Act, of applications for the renewal of justices' licences, are of opinion that the question of the renewal of any particular old on-licences requires consideration on grounds other than those on which the renewal of an old on-licence can be refused by them, they shall refer the matter to the compensation authority, together with their report thereon.

(2) The compensation authority shall consider all reports so made to them, and may, if they think it expedient, after giving the persons interested in the licensed premises, and, unless it appears to the compensation authority unnecessary, any other persons appearing to them to be interested in the question of the renewal of the licence of those premises (including the licensing justices), an opportunity of being heard, and, subject to the payment of compensation under this Act, refuse the renewal of any licence to which any such report relates.

COMPENSATION IN RESPECT OF NON-RENEWAL OF OLD ON-LICENCES.

Payment of compensation.

20.—(1) Where the compensation authority refuse the renewal of an old on-licence, a sum equal to the difference between the value of the licensed premises (calculated as if the licence were subject to the same conditions of renewal as were applicable immediately before the passing of the Licensing Act, 1904, and including in that value the amount of any depreciation of trade fixtures arising by reason of the refusal to renew the licence), and the value which those premises would bear if they were not licensed premises, shall be paid as compensation to the persons interested in the licensed premises.

(2) The amount to be so paid shall, if an amount is agreed upon by the persons appearing to the compensation authority to be interested in the licensed premises and is approved by that authority, be that amount, and, in default of such agreement and approval, shall be determined by the Commissioners of Inland

Revenue in the same manner and subject to the like appeal, under section ten of the Finance Act, 1894, to the High Court, as on the valuation of an estate for the purpose of estate duty, and in any event the amount shall be divided amongst the persons interested in the licensed premises (including the holder of the licence) in such shares as may be determined by the compensation authority:

57 & 58 Vict.
c. 30.

Provided that, in the case of the holder of the licence, regard shall be had not only to his legal interest in the premises or trade fixtures, but also to his conduct and to the length of time during which he has been the holder of the licence; and the holder of a licence, if a tenant, shall (notwithstanding any agreement to the contrary) in no case receive a less amount than he would be entitled to as tenant from year to year of the licensed premises.

(3) If on the division of the amount to be paid as compensation any question arises which the compensation authority consider can be more conveniently determined by the county court, they may refer that question to the county court in accordance with rules of court to be made for the purpose.

(4) Any costs incurred by the Commissioners of Inland Revenue on an appeal from their decision to the High Court under this section shall, unless the High Court order those costs to be paid by some party to the appeal other than the Commissioners, be paid out of the amount to be paid as compensation.

21.—(1) The compensation authority shall, in each year, unless they certify to the Secretary of State that it is unnecessary to do so in any year, for the purpose of their powers and duties under this Act as compensation authority, impose in respect of all old on-licences renewed in respect of premises within their area, charges at rates not exceeding, and graduated in the same proportion as, the rates shown in the scale of maximum charges set out in the First Part of the Third Schedule to this Act.

Compensation
fund.

(2) Charges payable under this section in respect of any licence shall be levied and paid together with, and as part of the duties on, the corresponding excise licence, but a separate account shall be kept by the Commissioners of Customs and Excise of the amount produced by those charges in the area of any compensation authority, and that amount shall in each year be paid over to that authority in accordance with rules made by the Treasury for the purpose.

(3) Such deductions from rent as are set out in the Second Part of the Third Schedule to this Act may, notwithstanding any agreement to the contrary, be made by any holder of a licence who pays a charge under this section, and also by any person from whose rent a deduction is made in respect of the payment of such a charge.

(4) Any sums paid to a compensation authority in respect of the charges under this section, or received by the compensation

authority from any other source for the payment of compensation under this Act, shall be paid by them to a separate account under their management, and the moneys standing to the credit of that account shall constitute the compensation fund.

(5) Any expenses incurred by the compensation authority in the payment of compensation under this Act, or otherwise in the exercise of their powers or the performance of their duties as compensation authority, and such expenses of the licensing justices incurred with respect to the matter of the reference to the compensation authority of the question of the renewal of old on-licences, or the grant of new on-licences, as the compensation authority may allow, shall be paid out of the compensation fund, and the compensation authority, in the exercise of their powers, shall have regard to the funds available for the purpose.

(6) The compensation authority may, with the consent of a Secretary of State, borrow in accordance with rules made under this Act, on the security of the compensation fund, for the purpose of paying any compensation payable under this Act.

TRANSFERS AND REMOVALS.

Transfer
sessions.

22.—(1) At the general annual licensing meeting in every year the licensing justices shall appoint a day, hour, and place for not less than four nor more than eight special sessions (in this Act referred to as transfer sessions) to be held in their district in the year following the general annual licensing meeting, at periods as near as may be equally distant, and the transfer of a justices' licence, and the special removal of a justices' licence, shall not be authorised except at transfer sessions or at a general annual licensing meeting.

Any reference to transfer sessions in this Act shall, so far as respects any application for a transfer or special removal of a justices' licence, or any transfer or special removal of a justices' licence in pursuance of such an application, and so far as respects protection orders, include a reference to the general annual licensing meeting.

(2) When the day, hour and place for transfer sessions have been appointed, the same procedure shall be followed for the purpose of giving notice thereof as is directed by this Act for the purpose of giving notice of a general annual licensing meeting.

Authority to
grant trans-
fers.

23.—(1) For the purposes of this Act the transfer of a justices' licence is the grant of a justices' licence in respect of certain premises to one person in substitution for another person who holds or has held the licence.

(2) An application for the transfer of a justices' licence may be allowed or refused by the licensing justices in the exercise of their discretion, subject as follows :—

(a) A transfer can only be authorised in the cases mentioned in the first column of the Fourth Schedule to this Act

and to the persons set opposite thereto respectively in the second column of that Schedule.

- (b) The transferee must be a fit and proper person in the opinion of the justices to be the holder of the licence in addition to being a person to whom a transfer can be authorised under the foregoing provision.
- (c) The special provisions of this Act affecting the renewal of an old on-licence shall apply to the transfer of an old on-licence as they apply to the renewal.

24.—(1) For the purposes of this Act, the removal of a justices' licence is the removal of a justices' licence from the premises in respect of which it was granted to other premises. Removals from one premises to other premises.

(2) A removal of a justices' licence may, subject to the limitations in this Act, be authorised by the licensing justices at their discretion, either on an application for the purpose made on any ground (in this Act referred to as an ordinary removal), or on an application made on the special ground—

- (a) that the premises in respect of which the licence has been granted are or are about to be pulled down or occupied under any Act for the improvement of highways, or for any other public purpose; or
- (b) that the premises in respect of which the licence has been granted have been rendered unfit for use for the business there carried on under the licence by fire, tempest, or other unforeseen and unavoidable calamity,

(in this Act referred to as a special removal).

(3) An ordinary removal of a justices' licence may be authorised to any premises within the licensing district in which the premises are situated from which it is desired to remove the licence, or to any premises within a licensing district within the same county, by the licensing justices of the district to which it is desired to remove the licence.

(4) A special removal of a justices' licence may be authorised to any premises within the same licensing district as the premises from which it is desired to remove the licence, being, in the opinion of the licensing justices, fit and convenient premises for the purpose.

25.—(1) The licensing justices on an application for the transfer of a justices' licence may in their discretion adjourn the consideration thereof. Procedure on applications for transfer.

(2) In the case of an application for the transfer of a justices' licence, the person (if any) holding the licence and the person to whom it is proposed that the licence shall be transferred shall attend at the transfer sessions at which the application is heard, and the agreement or other assurance, if any, under which the licence is to be transferred and held shall be produced to the licensing justices, and, for the purpose of

compelling the attendance of any such person, or any witness, the licensing justices shall have all the powers of a court of summary jurisdiction :

Provided that the licensing justices may, for good cause shown in any particular case, dispense with the attendance of either of such persons, or both.

(3) A person intending to apply for the transfer of a justices' licence at a transfer sessions, shall, fourteen days prior to the sessions, serve notice of his intention to make the application upon one of the overseers of the parish in which the premises in respect of which the application is to be made are situated, and upon the superintendent of police of the district. The notice shall be signed by the applicant or by his authorised agent, and shall set forth the name of the person to whom it is proposed that the licence shall be transferred, together with the place of his residence, and his trade or calling during the six months preceding the time of the serving of the notice.

Applications
for ordinary
removal.

26. The ordinary removal of a justices' licence may be authorised in the following manner :—

- (1) The application for the order authorising the removal shall be made by the person desiring to be the holder of the licence when removed :
- (2) The application shall be made at the general annual licensing meeting, or any adjournment thereof, to the justices who have power to authorise the removal :
- (3) Notice of the application shall be given in the same manner as notice of an application for a new licence :
- (4) A copy of the notice shall be served on any registered owner of the premises from which the licence is to be removed, and on the holder of the licence unless he is also the applicant :
- (5) The justices shall not make the order unless they are satisfied that no objection to the removal is made by the owner of the premises from which the licence is to be removed, or by the holder of the licence, or by any other person whom the justices may determine to have the right to object to the removal.

Subject as aforesaid, the licensing justices shall have the same power to make an order authorising the removal as they have to grant new licences, but no such order shall be valid unless it is confirmed by the confirming authority.

Procedure on
applications
for special
removal.

27. The power of the licensing justices to authorise the special removal of a justices' licence shall be subject to the same provisions and to the same procedure as the power of the justices to authorise the transfer of a justices' licence.

Provided that—

- (1) the notice to be given shall, instead of setting forth the description of the person to whom the licence

is to be transferred, set forth descriptions of the premises from which and to which it is proposed to remove the licence ; and

- (2) the person making an application for the special removal shall, in addition to giving notice in manner required with respect to a transfer, cause to be fixed, on some Sunday within six weeks next before the transfer sessions, at some time between the hours of ten in the forenoon and four in the afternoon, a notice of the application on the door of the premises to which it is proposed to remove the licence, and on the door of the church or chapel of the parish or place in which the premises are situated, and where there is no such church or chapel, on some other public and conspicuous place within the parish or place.

28. For the purpose of preventing repeated applications for the transfer or special removal of a justices' licence, the licensing justices may, at the general annual licensing meeting, make regulations determining the time which must elapse after the hearing of one application for the transfer or special removal before another such application may be made in respect of the same premises :

Regulations to prevent repeated application.

Provided that the justices may, in their discretion, for good cause shown, dispense with the observance of those regulations in any particular case.

APPEALS.

29.—(1) Any person who thinks himself aggrieved by the refusal of the licensing justices of any licensing district to grant a renewal, transfer, or special removal of a justices' licence, in cases where the power of refusal is vested in those justices, may appeal against the refusal to the court of quarter sessions for the county in which the premises in respect of which the appeal is made are locally situated, and the appeal shall be to the court of quarter sessions for the county although the premises are situated in a borough having a separate court of quarter sessions.

Appeal to quarter sessions.

For the purposes of this provision, the city of London shall be deemed to be a county and not a borough.

In the case of a liberty having a separate court of quarter sessions, the appeal may be either to the court of quarter sessions for the liberty or to the court of quarter sessions for the county in which the liberty is locally situated.

(2) The appeal shall be to the court next held after the refusal, unless that court is held within nineteen days thereafter, and in that case the appeal shall lie to the next subsequent court.

(3) Notice in writing shall be given by the appellant of his intention to appeal, and of the grounds thereof, to the clerk of

the licensing justices whose decision is appealed against, within five days next after the decision has been given, and at least fourteen days before the holding of the quarter sessions to which the appeal is made, and the appellant must also within those five days enter into recognizance with two sufficient sureties before some justice acting in or for the county or place conditioned to appear at the court of quarter sessions and prosecute his appeal, and abide the judgment of the court thereupon, and to pay such costs as may be awarded by the court.

(4) The court of quarter sessions shall hear and determine the matter of the appeal, and make such order therein with or without costs, as the court think fit, and may, if necessary, grant the renewal, transfer, or special removal of the licence in the same manner as the licensing justices.

(5) The judgment of the court of quarter sessions shall be final and conclusive for all intents and purposes.

(6) Where the court of quarter sessions dismiss an appeal, they shall make an order ordering any costs awarded by them to be paid, and, if necessary, issue process for enforcing the order.

(7) A justice shall not act in the hearing, or determination of an appeal under this section from any decision in which he took part.

Binding over
of witnesses
to appear on
appeal.

30.—(1) The justice before whom an appellant enters into a recognizance to prosecute his appeal may summon any person whose evidence appears to him to be material, and require him to be bound in recognizance to appear at the court of quarter sessions to whom the appeal is made, and give evidence in the appeal.

(2) If any person so summoned neglects or refuses to obey the summons, or refuses to enter into the recognizance, the justice may issue a warrant for his arrest, and, if he persists in his refusal to enter into a recognizance, may order him to be imprisoned till he enters into the recognizance, or is otherwise discharged in due course of law.

Costs on
appeals.

31.—(1) Where an appeal is dismissed or abandoned, the court of quarter sessions shall order the appellant to pay to the justices against whose decision he has appealed, or such person as they appoint, such sum by way of costs as is in the opinion of the court sufficient to indemnify those justices from all costs and charges whatsoever to which they have been put in consequence of his having served notice of his intention to appeal.

(2) If an appellant refuses or neglects forthwith to pay any sum so ordered to be paid, the court may order him to be imprisoned until the sum is paid.

Order for
payment of
costs of jus-
tices out of
local funds.

32.—(1) Where an appeal under this Act is allowed, or where any such appeal is dismissed or abandoned and the licensing justices whose decision is appealed against cannot recover

the costs incurred by them from any other person, the court of quarter sessions shall order the treasurer of the county in which the licensing district for which the licensing justices act is situated, or, in the case of a licensing district being a borough having a separate court of quarter sessions, the treasurer of the borough, to pay to the justices such sum as in the opinion of the court is sufficient to indemnify them from all costs and charges whatsoever to which they may have been put, and that treasurer is hereby authorised to pay the sum so ordered to be paid, and any sum so paid shall be allowed to him in his accounts.

(2) An order of a court of quarter sessions under this section may be made either at the sessions at which the appeal is heard, or at the next ensuing sessions, and the costs may be taxed either in or out of sessions.

PROVISIONAL JUSTICES' LICENCES FOR NEW PREMISES.

33.—(1) Any person interested in any premises about to be constructed or in course of construction for the purpose of being used as a house for the sale of intoxicating liquors to be consumed on the premises may apply to the licensing justices and to the confirming authority for the provisional grant and confirmation of a justices' licence in respect of those premises; and the justices and confirming authority, if satisfied with the plans submitted to them of the house, and that if the premises had been actually constructed in accordance with those plans they would, on application, have granted and confirmed such a licence in respect thereof, may make a provisional grant and order of confirmation accordingly.

Provisional
grant and
confirmation
of licences to
new premises.

(2) A provisional grant and order of confirmation shall not be of any validity until it has been declared to be final by an order of the licensing justices made after such notice has been given as may be required by the justices at a general annual licensing meeting or transfer sessions. The declaration shall be made if the justices are satisfied that the house has been completed in accordance with such plans as aforesaid, and are also satisfied that no objection can be made to the character of the holder of the provisional licence.

(3) A provisional grant and confirmation of a justices' licence shall be subject to the same conditions as to the giving of notices and generally as to procedure as those to which the grant and confirmation would be subject if they respectively were not provisional, with this exception that, where a notice is required to be put up on a door of a house, the notice may be put up in a conspicuous position on any part of the premises.

(4) This section shall, with the necessary variations, extend to the provisional grant and confirmation of an authority for the ordinary removal of a justices' on-licence.

DISQUALIFICATION OF PERSONS AND PREMISES FOR JUSTICES'
LICENCE, QUALIFICATION OF PREMISES.

Licences not to
be granted to
disqualified
person or
premises.

34. A justices' licence shall not be granted, whether as a new licence or by way of renewal or transfer, to any person who is a disqualified person for the purposes of this Act during the continuance of the disqualification, and a justices' licence shall not be granted in respect of or removed to any premises which by virtue of this Act are disqualified premises during the continuance of the disqualification, and a justices' licence held by a person so disqualified, or attached to premises so disqualified shall be void.

Disqualified
persons.

35. The following persons are disqualified persons for the purposes of this Act:—

- (1) Any sheriff's officer or officer executing the legal process of any court of justice in England or Wales while he is such an officer; and
- (2) Any person convicted of felony, the disqualification to continue during the lifetime of that person; and
- (3) Any person convicted of forging a justices' licence or making use of a forged justices' licence knowing it to have been forged, the disqualification to continue during the lifetime of that person; and
- (4) Any holder of a justices' licence convicted, whether under this Act or otherwise, of permitting his premises to be a brothel, the disqualification to continue during the lifetime of that person; and
- (5) Any person ordered to be disqualified under the provision for the purpose contained in this Act on conviction for selling intoxicating liquor without a justices' licence, the disqualification to continue for the time mentioned in the order; and
- (6) Any person who by virtue of any other Act is disqualified for holding a justices' licence, the disqualification to continue as provided under that Act.

Disqualifica-
tion of
premises.

36. Premises are disqualified premises for the purposes of this Act—

- (1) If the justices' licences of two persons licensed in respect of the premises (being persons neither of whom held a justices' licence in respect of the premises on the tenth day of August eighteen hundred and seventy-two) are forfeited within any period of two years, the disqualification to continue for one year from the date of the last forfeiture; and
- (2) If by virtue of any other Act a justices' licence cannot be granted in respect of those premises.

37.—(1) Subject to the exceptions contained in this section, premises shall not be qualified to receive a justices' on-licence unless—

Qualification
of premises
for a justices'
on-licence.

- (a) the premises are in the opinion of the licensing justices structurally adapted to the class of licence which is required, and in particular unless the house contains, exclusive of the rooms occupied by the inmates thereof, if the licence authorises the sale of spirits, two rooms, and, if the licence does not authorise the sale of spirits, one room, for the accommodation of the public; and
- (b) the premises are of the required annual value as set out in Part I. of the Fifth Schedule to this Act.

(2) Premises to which a justices' on-licence was attached on the tenth day of August eighteen hundred and seventy-two shall be excepted from the operation of the foregoing provisions of this section, but the annual value set out in Part II. of the Fifth Schedule to this Act shall be required as a qualification for receiving a justices' on-licence in the case of any such premises, if they are premises to which at that date a justices' on-licence for the sale of beer or cider alone was attached, or refreshment houses to which at that date a justices' on-licence to sell wine by retail was attached.

(3) Railway refreshment rooms are excepted from the requirements of this section as to annual value.

38. Premises shall not be qualified to receive a justices' off-licence for the sale of beer or cider, unless the premises are of the required annual value as set out in Part III. of the Fifth Schedule to this Act:

Qualification
of premises
for a justices'
off-licence.

Provided that no annual value shall be required in the case of a justices' off-licence granted to a beer dealer by way of renewal from time to time of a justices' off-licence for the sale of beer which was in force on the fourteenth day of July eighteen hundred and seventy, and was then held as a beer dealer's additional licence.

39.—(1) The licensing justices shall take such means as may seem to them best for ascertaining the annual value of any premises for the purposes of this Act, and may, if they think fit, order a valuation to be made of those premises by a competent person appointed by them for the purpose, and may order the costs of the valuation to be paid by the applicant for a licence.

Mode of
ascertaining
annual value.

(2) The annual value of premises for the purposes of this Act shall be the annual rent which a tenant might be reasonably expected, taking one year with another, to pay for the premises if he undertook to pay all tenants' rates and taxes, and tithe commutation rent-charge (if any), and if the landlord undertook to bear the cost of the repairs and insurance and other expenses

(if any) necessary to maintain the premises in a state to command the said rent, and if no licence were granted in respect thereof; but no land shall be included in such premises other than any pleasure grounds or flower or kitchen garden, yard, or curtilage usually held and occupied and used by the persons residing in and frequenting the house.

DISQUALIFICATION OF JUSTICES.

Disqualifica-
tion of justices

40.—(1) No justice shall act for any purpose under this Act, or be capable of being appointed a member of any committee for the purposes of this Act, who is or is in partnership with or holds any share in any company which is a common brewer, distiller, maker of malt for sale, or retailer of malt or of any intoxicating liquor, in the licensing district or in the district or districts adjoining to that in which that justice usually acts :

35 & 36 Vict.
c. 94.
2 Edw. 7. c. 28.

Provided that this provision shall not prevent a justice adjudicating in the case of persons charged with offences under section twelve of the Licensing Act, 1872, or section two of the Licensing Act, 1902.

(2) No justice shall act for any purpose under this Act in respect of any premises in the profits of which that justice is interested, or of which he is wholly or partly the owner, lessee, or occupier, or for the owner, lessee, or occupier of which he is manager or agent :

Provided that a justice shall not be disqualified under this provision to act in respect of any premises by reason of his having vested in him a legal interest only, and not a beneficial interest, in those premises or the profits thereof.

(3) No act done by any justice disqualified by this section shall be invalid by reason only of that disqualification.

(4) If any justice, declared by this Act not to be qualified to act thereunder, knowingly acts as a justice for any of the purposes thereof, he shall be liable in respect of each offence to a fine not exceeding one hundred pounds, to be recovered by action in the High Court :

Provided that a justice shall not be liable to a fine in respect of more than one offence committed by him under this section before the institution of any proceedings for the recovery of the fine.

(5) Notwithstanding anything in this section, a justice shall not be disqualified to act for any purpose under this Act by reason only of his being interested in a railway company which is a retailer of intoxicating liquor.

SUPPLEMENTAL PROVISIONS AS TO JUSTICES' LICENCES AND PROCEDURE.

Duration of
licences.

41. A justices' licence shall, unless it is previously forfeited or becomes void under the provisions of this Act, be in force from the fifth day of April after the granting thereof for one

year next ensuing, and no longer, or, in the case of a licence granted for a term, until the expiration of the term :

Provided that a licence granted by way of transfer or special removal of an annual licence shall continue in force only until the fifth day of April following the day on which it is granted.

42.—(1) A justices' licence shall be in such form as may be prescribed by the Secretary of State. Form of
licences.

(2) A renewal of a justices' licence may be made by an endorsement on the licence, or by the issue of a copy of the old licence.

(3) Separate justices' licences shall not be required in the case of separate excise licences, and the justices' licence shall comprehend a permission to the person to whom the licence is granted to take out as many excise licences as may be specified in the justices' licence.

43.—(1) A justices' licence shall either—

- (a) be signed by the majority of the licensing justices who are present when the licence is granted ; or
- (b) be sealed or stamped with an official seal or stamp in such form as the licensing justices may direct, the seal or stamp to be affixed under the authority of the licensing justices given at their general annual licensing meeting or transfer sessions as the case may be, and verified in each case by the signature of their clerk.

(2) Any seal or stamp purporting to be so affixed and verified shall be received in evidence without further proof.

(3) Where the licensing justices, on any application for the grant (either as a new licence or by way of renewal or transfer) or removal of a justices' licence, or a court of summary jurisdiction on an application for a protection order under this Act, are satisfied, by evidence submitted to them, that the licence has been lost, mislaid, or wilfully and without legal right withheld by the holder thereof, the justices or court may receive a copy of the licence certified to be a true copy under the hand of the clerk of the licensing justices by whom the licence was granted.

Any endorsement required to be made on the licence may be made on any such copy, and, if so made, shall have the same effect as if it had been made on the original licence.

A fee of half-a-crown and no more shall be payable for a certified copy of a licence furnished for the purpose of this section.

44.—(1) If any unauthorised person imitates or affixes an impression of any official seal or stamp on any justices' licence or imitation of a justices' licence or knowingly uses a justices' licence or imitation of a justices' licence, falsely purporting to be sealed or stamped in pursuance of this Act, he shall be guilty of forgery, and shall, on conviction on indictment, be punishable accordingly. Forgery of
justices'
licence.

(2) If any person forges or tenders, knowing the same to have been forged, any justices' licence, he shall be liable in respect of each offence to a fine not exceeding twenty pounds, or, in the discretion of the court, to imprisonment, with or without hard labour, for any period not exceeding six months, and any excise licence granted in pursuance of a forged justices' licence shall be void.

Fees in respect
of licences.

45.—(1) On the grant of a justices' licence the person to whom the licence is granted, on the renewal of a justices' licence the person to whom the renewed licence is granted, on the transfer of a justices' licence the person to whom the licence is transferred, and on the removal of a justices' licence the person whose licence is removed, shall pay to the clerk of the licensing justices the following sums:—

(a) for matters to be done by the clerk—

on the grant of a new justices' licence or the transfer or removal of a justices' licence, or the renewal of a justices' licence for the sale of spirits for consumption on the premises, six shillings and sixpence;

on the renewal of any other justices' licence, four shillings:

(b) for the service of notices, one shilling.

(2) If a clerk to licensing justices demands or receives from any person, in respect of the matters aforesaid, any greater fee or anything of greater value than the sums authorised under this section (being in the whole the sum of seven shillings and sixpence or five shillings, as the case may be), he shall be liable in respect of each offence to a fine not exceeding five pounds.

Returns to
Secretary of
State.

46. The compensation authority shall in each year make such returns to the Secretary of State as the Secretary of State may require, with respect to their own action as compensation authority, and the action of the licensing justices in referring to the compensation authority the question of the renewal of old on-licences, and the confirming authority shall in each year make such returns to the Secretary of State as the Secretary of State may require with respect to new justices' on-licences.

Rules.

47. A Secretary of State may make rules for carrying into effect the provisions of this Act as to the renewal of old on-licences, the payment of compensation, and as to the attachment of conditions to new justices' on-licences, and may by those rules amongst other things—

(a) provide for the provisional renewal of licences which are included in reports of licensing justices under this Act, and for consultation with those justices as to their reports, and for the time and manner of the consideration of those reports and of the payment of compensation; and

- (b) provide for the enforcement of any security given for money borrowed by the compensation authority, and for the time, not exceeding fifteen years, within which money borrowed is to be replaced ; and
- (c) regulate the management and application of the compensation fund and the audit of the accounts of the compensation authority ; and
- (d) provide for constituting, where requisite, committees of quarter sessions standing committees, and for the employment of officers for the purposes of the provisions of this Act as to the reference to the compensation authority of the question of the renewal of old on-licences, the payment of compensation, and as to the attachment of conditions to new justices' licences ; and
- (e) regulate the procedure of the compensation authority on the consideration of the reports of licensing justices under this Act and on any hearing under this Act with reference to the refusal of the renewal of old on-licences or the approval or division of the amount to be paid as compensation ; and
- (f) provide for the authentication of any documents on behalf of compensation authorities or their committees, or confirming authorities in a county or their committees.

CLERK OF LICENSING JUSTICES.

48. In the case of a licensing district being a petty sessional division of a county, the clerk to the justices of the petty sessional division, and in the case of a licensing district being a borough, the clerk to the justices of the borough or other person performing analogous duties, shall be the clerk of the licensing justices.

Clerk of licensing justices. . .

49.—(1) A solicitor or other person being a clerk of licensing justices shall not by himself, his partner, or clerk, as solicitor or agent for any person, conduct or act in any application for or in respect of a justices' licence, or any other proceedings whatsoever under this Act or under any provisions of the Licensing Acts, 1828 to 1906, which are not repealed by this Act, at any general annual licensing meeting, transfer sessions, or petty sessions held for the district for which he is the clerk, except so far as relates to the preparation of notices and forms.

Justices' clerks not to act professionally in licensing matters.

(2) If any person acts in contravention of this section, he shall be liable in respect of each offence to a fine not exceeding one hundred pounds.

REGISTER OF LICENCES.

50.—(1) There shall be kept in every licensing district by the clerk of the licensing justices of that district a register, to be called the register of licences, in such form as may be prescribed

Register of licences to be kept in licensing district.

by those justices, containing the particulars of all justices' licences granted in the district, the premises in respect of which they were granted, the names of the owners of those premises, and the names of the holders for the time being of the licences.

(2) The clerk of the licensing justices shall enter in the register of licences, in such form as may be prescribed by the Secretary of State, notice of any conviction of the holder of a justices' licence for an offence committed by him as such (including any offence against the provisions of any Act for the time being in force relating to the adulteration of drink), and the clerk of the court before whom the holder of a justices' licence is so convicted (if he is not the clerk to the licensing justices) shall forthwith send notice of the conviction to the clerk of the licensing justices.

(3) There shall also be entered on the register all matters directed to be so entered under any Act, all forfeitures of justices' licences, disqualification of premises, and other matters relating to the licences on the register.

(4) Where a justices' licence is granted (whether as a new licence or by way of renewal or transfer) or removed, a fee of one shilling shall be paid by the holder of the licence to the clerk of the licensing justices in respect of the registration of the transaction under this section.

(5) If in any licensing district there are more persons than one filling the office of clerk of the licensing justices, the licensing justices shall determine by which of those persons the register of licences is to be kept.

(6) The licensing justices may, if they think fit, cause the register kept in pursuance of this section to be divided into parts and assign a part to any portion of the licensing district.

Entry of
names of
owners of
premises on
register of
licences.

51.—(1) Every person applying for a new justices' licence, or the renewal of a justices' licence, shall state the name of the person for the time being entitled to receive either on his own account, or as mortgagee or other incumbrancer in possession, the rackrent of the premises in respect of which the licence is granted or renewed, and that name shall be endorsed on the licence, and the clerk of the licensing justices shall enter that name on the register as the name of an owner of the premises.

(2) The clerk of the licensing justices shall also enter on the register as an owner of the premises the name of any person possessing an estate or interest in the premises, whether as owner, lessee, or mortgagee, prior or paramount to that of the immediate occupier, if that person applies to be so registered and pays a fee of one shilling to the clerk: Provided that, when any such estate or interest is vested in two or more persons jointly, one only of those persons shall be registered as representing that estate or interest.

(3) A court of summary jurisdiction may, on the application of any person who proves to the court that he is entitled to be entered as an owner of any premises in place of any person

appearing on the register as owner, make an order substituting the name of the applicant, and that order shall be obeyed by the clerk of the licensing justices, and a corresponding correction may be directed to be made on the licence granted in respect of the premises of which that applicant claims to be an owner.

(4) Any reference in this Act to the registered owner of the premises shall be deemed to be a reference to any person whose name is for the time being entered on the register of licences as an owner of the premises and to include all such persons.

52. On any application for the grant (either as a new licence or by way of renewal or transfer) or removal of a justices' licence, the licensing justices shall have regard to any entries in the register of licences relating either to the person by whom or to the premises in respect of which the licence is to be held.

Regard to be
had to entries
in register of
licences.

53.—(1) Any ratepayer, any owner of premises to which a justices' licence is attached, and any holder of a justices' licence within the licensing district for which the register is kept, shall, upon payment of a fee of one shilling, and any officer of police, and any officer of customs and excise in the licensing district for which the register is kept, shall, without payment, be entitled at any reasonable time to inspect and take copies of or extracts from the register.

Inspection of
register and
evidence.

(2) If the clerk of the licensing justices or any other person prevents the inspection or taking copies of or extracts from the register of licences, or demands any unauthorised fee therefor, he shall be liable in respect of each offence to a fine not exceeding five pounds.

(3) The register of licences shall be receivable in evidence of the matters required by this Act to be entered therein, and a copy of an entry made in the register in pursuance of this Act, purporting to be signed by the clerk to the licensing justices and to be certified to be a true copy, shall be evidence of the matters stated in that entry, without proof of the signature or authority of the person signing the same.

CLOSING HOURS.

54. Subject to the provisions of this Act all premises in which intoxicating liquors are sold by retail shall be closed during the hours specified in the Sixth Schedule to this Act (in this Act referred to as general closing hours).

General hours
of closing.

55.—(1) The local authority of any licensing district, upon the production of such evidence as that authority may deem sufficient to show that it is necessary or desirable so to do for the accommodation of any considerable number of persons attending any public market, or following any lawful trade or calling, may grant, if that authority think fit, to the holder of any justices' on-licence, in respect of premises in the immediate neighbourhood of that market, or of the place where the persons

Exemption
from closing
by order of
local autho-
rities in re-
spect of cer-
tain trades.

follow that lawful trade or calling, an order (in this Act called a general order of exemption) exempting that person from the provisions of this Act as to general closing hours on such days and during such time, except between the hours of one and two o'clock in the morning, as may be specified in the order.

The holder of a general order of exemption under this section shall not be liable to any penalty for not closing his premises on such days and during such time as may be specified in the order; but he shall not be exempt from any other penalty under this or any other Act, or otherwise.

(2) A notice in such form as may be prescribed by the local authority, stating the days and hours during which the premises are permitted to be open under a general order of exemption must be affixed and kept affixed in a conspicuous position outside the premises; and if the holder of the order makes default in affixing or in keeping affixed the notice in manner aforesaid, during any part of the time for which his exemption is granted, he shall be liable in respect of each offence to a fine not exceeding five pounds.

Every person who keeps affixed to his premises any such notice when he does not hold a general order of exemption shall be liable in respect of each offence to a fine not exceeding ten pounds.

(3) The local authority may at any time, if it think fit, withdraw a general order of exemption, or alter the order by way of extension or restriction, as the authority deems necessary or expedient, so however as not to render any person liable to any penalty for anything done under the order before the holder was informed of the withdrawal or alteration.

(4) The following persons and bodies of persons shall be local authorities of licensing districts for the purpose of the provisions of this Act relating to closing hours; that is to say:—

- (a) In the metropolitan police district, the commissioner of police for the metropolis, subject to the approbation of the Secretary of State:
- (b) In the city of London, the commissioner of city police, subject to the approbation of the Lord Mayor of the said city: and
- (c) In any other place a petty sessional court.

Power to vary
general closing
hours on Sun-
day afternoon.

56.—(1) Notwithstanding anything in this or in any local Act, the licensing justices may, if they think fit, as respects premises situate beyond the metropolis as defined in the Sixth Schedule to this Act, for the purpose of accommodating the hours of closing on Sunday, Good Friday, and Christmas Day to the hours of public worship in that place, by order direct that the premises shall remain closed until one o'clock in the afternoon instead of half an hour after noon, and in that case the premises shall be closed in the afternoon from three until six o'clock, instead of from half-past two until six o'clock.

(2) Where an order is made under this section, the provisions of this Act relating to closing hours shall take effect as if the general closing hours were modified as respects premises affected by the order in accordance therewith.

(3) An order under this section shall not come into operation until the expiration of one month after the date thereof, and shall be advertised in such manner as the licensing justices direct, and shall be in force until revoked; the expense of any such advertisement may be defrayed in like manner as the expenses of advertising the sittings of the licensing justices are defrayed.

57.—(1) If the holder of a justices' on-licence applies to the local authority for an order (in this Act called a special order of exemption) exempting him from the provisions of this Act relating to general closing hours on any special occasion or occasions, the local authority may, if in their discretion they think fit to do so, grant to the applicant such a special order so exempting him during the hours and on the special occasion or occasions specified in the order.

Power to grant exemption from closing hours on special occasions.

(2) The holder of a justices' on-licence to whom a special order of exemption is granted under this section shall not be subject to any penalty for the contravention of the provisions of this Act relating to general closing hours during the time to which the order extends, but he shall not be exempted by the order from any penalty to which he may be subject by any other provision of this or any other Act of Parliament.

58.—(1) Where, on the occasion of an application for a new justices' on-licence or the transfer, removal, or renewal of a justices' on-licence, the applicant, at the time of his application, applies to the licensing justices to insert in his licence a condition that he shall keep the premises in respect of which the licence is or is to be granted closed during the whole of Sunday, the justices shall insert that condition in the licence.

Six-day licences.

(2) The holder of a justices' on-licence in which such a condition is inserted (in this Act referred to as a six-day licence) shall keep his premises closed during the whole of Sunday, and the provisions of this Act with respect to the closing of licensed premises during certain hours on Sundays shall apply to the premises in respect of which a six-day licence is granted as if the whole of Sunday were mentioned in the Sixth Schedule to this Act instead of certain hours only, but nothing in this provision shall oblige the holder of a six-day licence to close his premises the whole of Christmas Day or Good Friday as if it were Sunday.

(3) The holder of a six-day licence shall not sell any intoxicating liquor on Sunday to any person whatever not lodging in his house.

(4) If the holder of a six-day licence sells intoxicating liquor on Sunday to any person not lodging in his house, he shall be deemed to be selling intoxicating liquor without a justices' licence.

Early-closing
licences.

59.—(1) Where, on the occasion of any application for a new justices' on-licence, or the ordinary removal or renewal of a justices' on-licence, the applicant applies to the licensing justices to insert in his licence a condition that he shall close the premises in respect of which the licence is or is to be granted one hour earlier at night than that at which those premises would otherwise have to be closed, the justices shall insert that condition in the licence.

(2) The holder of a justices' on-licence in which such a condition is inserted (in this Act referred to as an early-closing licence) shall close his premises at night one hour earlier than the ordinary hour at which the premises would be closed under the provisions of this Act relating to general closing hours, and the provisions of this Act shall apply to the premises as if the earlier hour were specified as respects those premises in the Sixth Schedule to this Act.

Remission of
duty in case
of six-day or
early-closing
licences.

60. The holder of a six-day or of an early-closing licence may obtain from the Commissioners of Customs and Excise any licence granted by those Commissioners which he is entitled to obtain in pursuance of the licence, upon payment of a sum representing six-sevenths, or if the licence is both a six-day and an early-closing licence five-sevenths, of the duty which would otherwise be payable by him for a similar licence not being a six-day or an early-closing licence.

Penalty on
holder of
licence for
contravening
provisions as
to closing
hours.

61.—(1) If any person during the time at which premises for the sale of intoxicating liquors are directed to be closed by or in pursuance of this Act, sells or exposes for sale in those premises any intoxicating liquor, or opens or keeps open those premises for the sale of intoxicating liquors, or allows any intoxicating liquors although purchased before the hours of closing to be consumed on those premises, that person shall be liable in respect of each offence to a fine not exceeding in the case of the first offence ten pounds, and in the case of any subsequent offence twenty pounds: Provided that—

- (a) A holder of a justices' licence shall not be liable to any penalty for supplying intoxicating liquors, after the hours of closing, to private friends bonâ fide entertained by him at his own expense; and
- (b) Nothing in this Act shall preclude the holder of a justices' on-licence from selling intoxicating liquor to be consumed on the premises at any time to persons lodging in his house, or, except where the licence is a six-day licence and the sale is on Sunday, to bonâ-fide travellers; and

(c) Nothing in the provisions of this Act as to closing hours shall preclude the sale at any time at a railway station of intoxicating liquors to persons arriving at or departing from the station by railroad.

(2) If in the course of any proceedings taken against the holder of a justices' licence for contravening the provisions of this Act as to closing hours that person (in this section referred to as the defendant) fails to prove that the person to whom the intoxicating liquor was sold (in this section referred to as the purchaser) was a bonâ fide traveller, but the court are satisfied that the defendant truly believed that the purchaser was a bonâ fide traveller, and further that the defendant took all reasonable precautions to ascertain whether or not the purchaser was a bonâ fide traveller, the court shall deal with the case as against the defendant as if the purchaser had been a bonâ fide traveller, and, if they think that the purchaser falsely represented himself to be a bonâ fide traveller, the court may direct proceedings to be instituted against the purchaser under this Act for so representing himself to be a bonâ fide traveller.

(3) A person for the purposes of this Act shall not be deemed to be a bonâ fide traveller unless the place where he lodged during the preceding night is at least three miles distant from the place where he demands to be supplied with liquor, that distance to be calculated by the nearest public thoroughfare.

62.—(1) If, during any period during which any premises are required under the provisions of this Act to be closed, any person is found on those premises, he shall, unless he satisfies the court that he was an inmate, servant, or a lodger on the premises, or a bonâ fide traveller, or that otherwise his presence on the premises was not in contravention of the provisions of this Act with respect to closing hours, be liable in respect of each offence to a fine not exceeding forty shillings.

Penalty on
person found
on licensed
premises
during closing
hours.

(2) Any constable may demand the name and address of any person found on any premises during the period during which they are required by the provisions of this Act to be closed, and, if he has reasonable ground to suppose that the name or address given is false, may require evidence of the correctness of the name and address, and may, if the person fail upon his demand to give his name or address, or the required evidence, apprehend him without warrant, and take him, as soon as practicable, before a justice of the peace.

(3) If any person required by a constable under this section to give his name and address fails to give the same, or gives a false name or address, or gives false evidence with respect to the name and address, he shall be liable in respect of each offence to a fine not exceeding five pounds.

(4) If any person by falsely representing himself to be a traveller or a lodger buys or obtains or attempts to buy or obtain at any premises any intoxicating liquor during the period during which the premises are closed in pursuance of this Act, he shall be liable in respect of each offence to a fine not exceeding five pounds.

Power of
justices to
close licensed
premises in
case of riot.

63.—(1) Any two justices of the peace acting for any county or place where any riot or tumult happens, or is expected to happen, may order every holder of a justices' licence in or near the place where the riot or tumult happens, or is expected to happen, to close his premises during any time which the justices may order.

(2) If any person keeps open his premises for the sale of intoxicating liquors during any time at which the justices have so ordered them to be closed, he shall be liable in respect of each offence to a fine not exceeding fifty pounds; and any person acting by order of any justices may use such force as may be necessary for the purpose of closing the premises.

OCCASIONAL LICENCES.

Occasional
licences.

64.—(1) An occasional licence shall not be granted except with the consent of a petty sessional court, and unless twenty-four hours at least before applying for that consent the applicant has served on the superintendent of police for the district notice of his intention to apply for the consent, setting out his name and address, the place and occasion in respect of which the licence is required, the period for which the licence is to be in force, and the hours to be specified in the consent of the justices :

Provided that consent may be given under this section by any two justices acting for the division and sitting together, where there is no sitting of a petty sessional court within three days before the time when the licence is required, and it is shown to the satisfaction of those justices that it was not practicable to make an application to a petty sessional court. Notice of a consent so given shall be sent to the superintendent of the police.

(2) The consent required by this section shall be substituted for the consent mentioned in section thirteen of the Revenue Act, 1862, section twenty of the Revenue Act, 1863, section five of the Revenue Act, 1864, and section nineteen of the Licensing Act, 1874.

25 & 26 Vict. c. 22.
26 & 27 Vict. c. 33.
27 & 28 Vict. c. 18.
37 & 38 Vict. c. 49.

(3) For the purpose of the provisions of this Act as to public order, that is to say, the sections relating to the penalty for permitting drunkenness, the penalty for keeping a disorderly house, the penalty for permitting premises to be a brothel, offences in relation to constables, the penalty for permitting gaming, the power to exclude drunkards from licensed premises, the entry on premises by constables for the purpose of enforcing this Act and for the purpose of section twelve of the Licensing

35 & 36 Vict. c. 94,

Act, 1872, and any provisions for giving effect to those sections, a person taking out an occasional licence shall be deemed to be the holder of a justices' licence, and the place in which any intoxicating liquor is sold in pursuance of the occasional licence shall be deemed to be licensed premises, and to be the premises of the person taking out the occasional licence.

(4) For the purposes of this Act an "occasional licence" is a licence for the sale of intoxicating liquor granted under the authority of the Commissioners of Customs and Excise in pursuance of section thirteen of the Revenue Act, 1862, section twenty of the Revenue Act, 1863, and section five of the Revenue Act, 1864.

GENERAL REGULATIONS AS TO SALE OF LIQUOR AND CONDUCT OF LICENSED PREMISES.

65.—(1) Subject to the provisions of this Act, a person shall not sell or expose for sale by retail any intoxicating liquor unless he holds a justices' licence authorising him to hold an excise licence for the sale of that intoxicating liquor, nor at any place except that for which the justices' licence authorises him to hold an excise licence for the sale of that liquor.

Penalty for
selling liquor
without a
justices'
licence

(2) If any person acts in contravention of this section, he shall be liable in respect of each offence—

- (a) in the case of the first offence to a fine not exceeding fifty pounds, or to imprisonment with or without hard labour for a term not exceeding one month; and
- (b) in the case of the second offence to a fine not exceeding one hundred pounds, or to imprisonment with or without hard labour for a term not exceeding three months; and
- (c) In case of any subsequent offence to a fine not exceeding one hundred pounds, or to imprisonment with or without hard labour for any term not exceeding six months.

(3) On conviction for a second or any subsequent offence under this section, the person convicted shall, if he is the holder of a justices' licence, forfeit that licence.

•(4) The court before whom a person is convicted of an offence under this section may order him to be disqualified for holding any justices' licence, if the conviction is for a second offence, for any term not exceeding five years, and, if the conviction is for any subsequent offence, for any term of years or for his lifetime.

(5) On the conviction of any person for an offence under this section, the court may, if they think it expedient to do so, declare all intoxicating liquor found in the possession of the person convicted, if he is the holder of a justices' licence, and the vessels containing the liquor (if the liquor and vessels are

not otherwise forfeited under the provision of this Act) to be forfeited.

(6) The occupier of any premises on which any intoxicating liquor is sold in contravention of this section, or if the premises are occupied by more than one person, every occupier thereof, shall, if it be proved that he was privy or consenting to the sale, be subject to the penalties imposed upon persons under this section for the sale of intoxicating liquors without a justices' licence.

(7) No penalty shall be incurred under this section by the heirs, executors, administrators, or assigns of any holder of a justices' licence who dies before the expiration of his licence, or by the trustee of any holder of a justices' licence who is adjudged a bankrupt, or whose affairs are liquidated by arrangement before the expiration of his licence, in respect of the sale or exposure for sale of any intoxicating liquor, if the sale or exposure for sale is made on the premises specified in the licence, and takes place prior to the next transfer sessions, or, if the next transfer sessions are held within fourteen days next after the death of the licensed person or the appointment of a trustee in the case of his bankruptcy, or the liquidation of his affairs by arrangement, prior to the next transfer sessions but one.

Liability of
licensed person
to penalty for
allowing
drinking in
contravention
of his licence.

66.—(1) If any person purchases any intoxicating liquor from the holder of a justices' licence whose licence does not cover the sale of that liquor for consumption on the premises, and drinks the liquor on the premises where it is sold, or on any premises adjoining or near to those premises, if belonging to the seller of the liquor or under his control or used by his permission, or on any highway adjoining or near any such premises, and it appears to the court that the drinking was with the privy or consent of the holder of the licence who sold the liquor, the holder of the licence shall be liable in respect of each offence to a fine not exceeding in the case of the first offence ten pounds, and in the case of any subsequent offence twenty pounds.

(2) If the holder of a justices' licence whose licence does not cover the sale of liquor to be consumed on his premises himself takes or carries, or employs or suffers any other person to take or carry, any intoxicating liquor out of or from his premises for the purpose of being sold on his account, or for his benefit or profit, and of being drunk or consumed in any place whatsoever (whether enclosed or not, and whether or not a public thoroughfare) other than the licensed premises with intent to evade the conditions of the licence, the holder of the licence shall be liable in respect of each offence to a fine not exceeding in the case of the first offence ten pounds, and in the case of any subsequent offence twenty pounds, and, if the place is any house, tent, shed, or other building of any kind whatever, belonging to the holder of the licence or hired, used, or occupied by him, the holder of the licence shall be deemed, unless

the contrary is proved, to have intended to evade the conditions of the licence.

67.—(1) The holder of a justices' on-licence shall not sell or allow any person to sell, to be consumed on the premises, any description of spirits to any person apparently under the age of sixteen years. Penalty for sale of spirits to children.

(2) If the holder of a justices' on-licence acts in contravention of this section, he shall be liable in respect of each offence to a fine not exceeding in the case of the first offence twenty shillings, and in the case of any subsequent offence forty shillings.

68.—(1) The holder of a justices' licence shall not knowingly sell or deliver or allow any person to sell or deliver, save at the residence or working place of the purchaser, any description of intoxicating liquor to any person under the age of fourteen years for consumption by any person on or off the premises, excepting such intoxicating liquors as are sold or delivered in corked and sealed vessels in quantities not less than one reputed pint for consumption off the premises only. Penalty for improper sale of liquor to children.

(2) A person shall not knowingly send any person under the age of fourteen years to any place where intoxicating liquors are sold, or delivered, or distributed, for the purpose of obtaining any description of intoxicating liquor, excepting as aforesaid, for consumption by any person on or off the premises.

(3) Nothing in this section shall prevent the employment by the holder of a justices' licence of a member of his family or his servant or apprentice as a messenger to deliver intoxicating liquors.

(4) If any person acts in contravention of this section, he shall be liable in respect of each offence to a fine not exceeding in the case of the first offence forty shillings, and in the case of any subsequent offence five pounds.

(5) For the purposes of this section—

The expression "corked" means closed with a plug or stopper, whether it is made of cork or wood, or glass, or some other material; and

The expression "sealed" means secured with any substance without the destruction of which the cork, plug, or stopper cannot be withdrawn.

69.—(1) All intoxicating liquor which is sold by retail and not in cask or bottle, and is not sold in a quantity less than half a pint, shall be sold in measures marked according to the imperial standards. Obligation to sell by standard measure.

(2) If any person sells or suffers any person under his control or in his employment to sell any intoxicating liquor so as to contravene this section, he shall be liable in respect of each offence to a fine not exceeding in the case of the first offence ten pounds, and in the case of any subsequent offence twenty pounds,

and shall also be liable to forfeit the illegal measure in which the liquor is sold.

Prohibition of internal communication between licensed premises and house of public resort.

70.—(1) A person shall not make or use or allow to be made or used any internal communication between any licensed premises and any premises, not being licensed premises, which are used for public entertainment or resort, or as a refreshment house.

(2) If any person acts in contravention of this section, he shall be liable to a fine not exceeding ten pounds for every day during which the communication remains open, and in addition shall, if he is the holder of a justices' licence, forfeit that licence.

Certain structural alterations not to be made without consent of licensing justices.

71.—(1) An alteration in any licensed premises in respect of which a justices' on-licence is in force, which gives increased facilities for drinking, or conceals from observation any part of the premises used for drinking, or which affects the communication between the part of the premises where intoxicating liquor is sold and any other part of the premises, or any street or other public way, shall not be made without the consent of the licensing justices given either at the general annual licensing meeting or at transfer sessions.

(2) The licensing justices may, before giving their consent, require plans of the proposed alterations to be deposited with their clerk at such time as they may determine.

(3) If any such alteration is made, save under the order of some lawful authority, without such consent as aforesaid, a court of summary jurisdiction, on complaint, may by order declare the licence to be forfeited, or direct that, within a time fixed by the order, the premises shall be restored to their original condition.

Power to require structural alterations.

72.—(1) On any application for the renewal of a justices' on-licence the licensing justices may require a plan of the premises to be produced before them, and to be deposited with their clerk, and on renewing any such licence they may, by order, direct that, within a time fixed by the order, such structural alterations as they think reasonably necessary to secure the proper conduct of the business shall be made in that part of the premises where intoxicating liquor is sold or consumed.

(2) Any such order shall be subject to an appeal to a court of quarter sessions, in the same manner as the refusal of licensing justices to grant the renewal of a justices' licence :

Provided that, in a borough having a separate court of quarter sessions, the appeal may, at the option of the appellant, be either to the borough quarter sessions or to the quarter sessions of the county in which the borough is locally situated.

(3) If any such order for structural alteration is made and complied with, no further requisition for the structural alteration of the premises shall be made within the next five years.

(4) If the holder of the licence makes default in complying with any such order, he shall be liable to a fine not exceeding twenty shillings for every day during which the default continues.

73.—(1) The holder of a justices' licence shall not have in his possession on the premises in respect of which his licence is granted, any description of intoxicating liquor which he is not authorised to sell. Improper storing of liquor.

(2) If any person acts in contravention of this section, he shall, unless he accounts for the possession of the intoxicating liquor to the satisfaction of the court by whom he is tried, be liable in respect of each offence to a fine not exceeding in the case of the first offence ten pounds, and in the case of any subsequent offence twenty pounds, and shall forfeit the liquor in respect of which the offence is committed, and the vessels containing it.

74.—(1) The holder of a justices' licence shall cause to be painted or fixed, and shall keep painted or fixed on the premises in respect of which his licence is granted, in a conspicuous place and in such form and manner as the licensing justices direct, his name, with the addition after the name of the word "licensed," and of words sufficient, in the opinion of the justices, to express the business for which his licence has been granted, and in particular— Names of holder of licence, &c., to be affixed to licensed premises.

- (a) of words expressing whether the licence is a licence for the sale of intoxicating liquor to be consumed on, or off the premises only, as the case may be; and
- (b) in the case of a six-day licence, of words indicating that the licence is for six days only; and
- (c) in the case of an early-closing licence, of such words as the licensing justices may order for giving notice to the public that the licence is an early-closing licence.

(2) A person shall not have on his premises any words or letters importing that he is authorised, as the holder of a licence, to sell any intoxicating liquor which he is not in fact duly authorised to sell.

(3) If any person fails to comply with or acts in contravention of this section, he shall be liable in respect of each offence to a fine not exceeding in the case of the first offence ten pounds, and in the case of any subsequent offence twenty pounds.

75.—(1) The holder of a justices' licence shall not permit drunkenness, or any violent, quarrelsome, or riotous conduct to take place on his premises, or sell any intoxicating liquor to a drunken person. Penalty for permitting drunkenness.

(2) If the holder of a justices' licence acts in contravention of this section, he shall be liable in respect of each offence to a fine not exceeding in the case of the first offence ten pounds, and in the case of any subsequent offence twenty pounds.

(3) If the holder of a justices' licence is charged with permitting drunkenness on his premises in contravention of this section, and it is proved that any person was drunk on his premises, it shall lie on the holder of the licence to prove that he and the persons employed by him took all reasonable steps for preventing drunkenness on the premises.

Penalty for
keeping a dis-
orderly house.

76.—(1) The holder of a justices' licence shall not knowingly permit his premises to be the habitual resort or place of meeting of reputed prostitutes, whether the object of their so resorting or meeting is or is not prostitution, but nothing in this section shall prevent him allowing any such persons to remain on his premises for the purpose of obtaining reasonable refreshment for such time as is necessary for the purpose.

(2) If the holder of a justices' licence acts in contravention of this section, he shall be liable in respect of each offence to a fine not exceeding in the case of the first offence ten pounds, and in the case of any subsequent offence twenty pounds.

Penalty for
permitting
premises to
be a brothel.

77.—(1) The holder of a justices' licence shall not permit his premises to be a brothel.

(2) If the holder of a justices' licence acts in contravention of this section, he shall be liable in respect of each offence to a fine not exceeding twenty pounds.

(3) A holder of a justices' licence convicted, whether under this section or otherwise, of the offence of permitting his premises to be a brothel shall forfeit his licence.

Offences in
relation to
constables.

78.—(1) The holder of a justices' licence shall not—

- (a) knowingly harbour or knowingly suffer to remain on his premises any constable during any part of the time appointed for the constable being on duty, unless for the purpose of keeping or restoring order or in execution of his duty; or
- (b) supply any liquor or refreshment, whether by way of gift or sale, to any constable on duty unless by authority of some superior officer of the constable; or
- (c) bribe or attempt to bribe any constable.

(2) If the holder of a justices' licence acts in contravention of this section, he shall be liable in respect of each offence to a fine not exceeding in the case of the first offence ten pounds, and in the case of any subsequent offence twenty pounds.

Penalty for
permitting
gaming.

79.—(1) The holder of a justices' licence shall not—

- (a) suffer any gaming or unlawful game to be carried on on his premises; or
- (b) open, keep, or use his premises in contravention of the Betting Act, 1853, or suffer his premises to be opened, kept, or used in contravention of that Act.

(2) If the holder of a justices' licence acts in contravention of this section, he shall be liable in respect of each offence to a fine not exceeding in the case of the first offence ten pounds, and in the case of any subsequent offence twenty pounds.

80.—(1) The holder of a justices' licence may refuse to admit to and may turn out of the premises in respect of which his licence is granted any person who is drunken, violent, quarrelsome, or disorderly, and any person whose presence on his premises would subject him to a penalty under this Act. Power to exclude drunkards from licensed premises.

(2) Any such person who, upon being requested in pursuance of this section by the holder of the licence, or his agent or servant, or any constable, to quit the premises, refuses or fails so to do, shall be liable in respect of each offence to a fine not exceeding five pounds, and all constables are required on the demand of the holder of the licence, or the agent, or servant to expel or assist in expelling every such person from the premises, and may use such force as may be required for that purpose.

(3) The court committing any person to prison for non-payment of any fine under this section may order him to be imprisoned with hard labour.

81.—(1) Any constable may, for the purpose of preventing or detecting the violation of any of the provisions of this Act which it is his duty to enforce, at all times enter on any licensed premises. Entry on premises by constables for the purpose of enforcing the Act.

(2) If any person, by himself, or by any person in his employ or acting by his direction or with his consent, refuses or fails to admit any constable in the execution of his duty demanding to enter in pursuance of this section, that person shall be liable in respect of each offence to a fine not exceeding in the case of the first offence five pounds, and in the case of any subsequent offence ten pounds.

82.—(1) Any justice of the peace, if satisfied by information on oath that there is reasonable ground to believe that any intoxicating liquor is sold by retail or exposed or kept for sale by retail at any place within his jurisdiction, whether a building or not, in which that liquor is not authorised to be sold by retail, may in his discretion grant a warrant under his hand, by virtue whereof it shall be lawful for any constable named in the warrant, at any time or times within one month from the date thereof, to enter, and if need be by force, the place named in the warrant, and every part thereof, and examine the same and search for intoxicating liquor therein, and seize and remove any intoxicating liquor found therein which there is reasonable ground to suppose is in the place for the purpose of unlawful sale at that or any other place, and the vessels containing the liquor. Search warrant for detection of liquor sold or kept contrary to law.

(2) In the event of the owner or occupier of the premises being convicted of selling by retail or exposing or keeping for

sale by retail any liquor which he is not authorised to sell by retail, the intoxicating liquor so seized and the vessels containing the liquor shall be forfeited.

(3) When a constable has entered any premises in pursuance of a warrant under this section, and has seized and removed liquor as aforesaid, any person found at the time on the premises shall, until the contrary is proved, be deemed to have been on the premises for the purposes of illegally dealing in intoxicating liquor and be liable in respect of each offence to a fine not exceeding forty shillings.

(4) Any constable may demand the name and address of any person found on any premises on which he seizes or from which he removes liquor as aforesaid, and, if he has reasonable ground to suppose that the name or address given is false, may examine the person further as to the correctness of the name and address, and may, if the person fail upon that demand to give his name or address, or to answer satisfactorily the questions so put to him, apprehend him without warrant and take him as soon as practicable before a justice of the peace.

(5) If any person required by a constable under this section to give his name and address fails to give the same, or gives a false name or address, or gives false information with respect to his name and address, that person shall be liable in respect of each offence to a fine not exceeding five pounds.

Sessions, &c.
not to be held
in licensed
premises.

83. No meeting of justices in petty or special sessions shall be held in licensed premises, or in any room, whether licensed or not, in any building licensed for the sale of intoxicating liquors; nor shall any coroner's inquest be held on any such licensed premises where other suitable premises have been provided for the inquest.

Obligation of
holder of
licence to pro-
duce licence.

84.—(1) Every holder of a justices' licence, or of a general or special order of exemption made by a local authority under this Act in relation to closing hours, shall, by himself, his agent, or servant, produce the licence or order within a reasonable time after the production thereof is demanded by a justice of the peace, constable, or officer of customs and excise, and deliver the same to be read and examined by him.

(2) If any person fails to comply with this section, he shall be liable in respect of each offence to a fine not exceeding ten pounds.

Evidence of
sale or con-
sumption of
intoxicating
liquor.

85.—(1) In proving the sale or consumption of intoxicating liquor for the purpose of any proceeding relative to any offence under this Act, it shall not be necessary to show that any money actually passed or any intoxicating liquor was actually consumed, if the court hearing the case are satisfied that a transaction in the nature of a sale actually took place, or that any consumption of intoxicating liquor was about to take place.

(2) Proof of consumption or intended consumption of intoxicating liquor on premises to which a justices' licence is attached, by some person other than the occupier of, or a servant employed on, the premises, shall be evidence that the liquor was sold by or on behalf of the holder of the licence to the person consuming, or being about to consume, or carrying away the same.

PROTECTION OF OWNERS.

86.—(1) Where a conviction of a holder of a justices' licence for an offence committed by him as such is entered in the register of licences, or where an order is made by the licensing justices under this Act directing structural alterations in licensed premises, or an order is made by a court of summary jurisdiction for enforcing the provisions of this Act prohibiting certain structural alterations being made in licensed premises without the consent of the licensing justices, it shall be the duty of the clerk of the licensing justices to serve notice of the conviction or order, as the case may be, on the registered owner of the premises, and, in the case of an order made by a court of summary jurisdiction, the clerk of the court, if not the clerk of the licensing justices, shall send notice of the order to the clerk of the licensing justices.

Notice of
conviction, &c.
to be given to
owners.

(2) In any case where the conviction of the holder of a licence involves the disqualification of the licensed premises, the court before whom the conviction takes place shall cause notice of the disqualification to be served on any registered owner of the premises if that owner is not the occupier.

87. Where the holder of a justices' licence is convicted for the first time of any one of the following offences—

- (a) making an internal communication between his licensed premises and any premises not being licensed premises;
- (b) forging a justices' licence or making use of a forged justices' licence;
- (c) selling spirits without a licence;
- (d) any felony;

Right of
owners to ap-
ply for transfer
of forfeited
licence.

and in consequence either becomes personally disqualified or has his licence forfeited, or where a justices' on-licence for a term is forfeited under the provisions of this Act, or where a justices' licence is forfeited on account of alterations being made in licensed premises without the consent required under this Act, any owner of the premises, or any person on his behalf, may make an application to a court of summary jurisdiction for a protection order, and the court may in their discretion grant to him such an order in the same manner and subject to the same provisions in and subject to which they may grant such an order to a proposed transferee pending a proposed transfer.

TEMPORARY AUTHORITY TO CONTINUE BUSINESS.

Protection
order or author-
ity to carry
on business
pending
transfer.

88.—(1) In any case where the transfer of a justices' licence may be authorised, a court of summary jurisdiction may, if they think fit, as respects any premises situated in their division, on an application made for the purpose by any person (not being a person who is disqualified for the purpose) to whom it is proposed to transfer a justices' licence in respect of the premises, grant to him an authority to carry on business on the premises and to sell any intoxicating liquors which may be sold on the premises under any excise licence authorised by the justices' licence, and an authority so granted is in this Act referred to as a protection order.

(2) A protection order shall remain in force until the next transfer sessions, or if an application for a transfer in respect of the premises is adjourned at those transfer sessions, until the hearing of the adjourned application and no longer.

(3) A protection order shall be authenticated by an endorsement on the licence proposed to be transferred, signed, sealed and stamped by or on behalf of the justices granting the order in the manner provided by this Act with respect to justices' licences, and a fee of half-a-crown, and no more, shall be payable for every such endorsement.

(4) On any application for a protection order, the court may examine all necessary parties on oath.

(5) A protection order shall not be granted unless the person making the application for the order has, one week at least before the holding of the court to which the application is made, served on the superintendent of police of the district a like notice as is required in the case of an application for a transfer :

Provided that in any case of urgency the notice may be dispensed with if in the opinion of the court such notice to the police has been given as is reasonable under the circumstances of the particular case.

(6) Where an authority is given to any person under this section by a court of summary jurisdiction by means of a protection order, the like authority may be given by the proper officer of Customs and Excise by endorsement on the excise licence.

(7) Any person to whom a protection order is granted shall, while the order is in force, be subject to the provisions of this Act with respect to the regulation, government, or control of holders of justices' licences, in the same manner as if he were the holder of a justices' licence.

(8) Any application under this section with respect to premises situated in a police court division of a metropolitan police magistrate shall, except within the borough of Southwark, be made to that magistrate.

Continuance of
licence pend-
ing appeal

89. Where the licensing justices refuse the renewal of a licence, and an appeal against the refusal is duly made, and the

licence expires before the appeal is determined, the Commissioners of Customs and Excise may, by order, permit the person the renewal of whose licence is refused to carry on his business during the pendency of the appeal upon such conditions as they think just; and, subject to those conditions, any person so permitted may, during the continuance of the order, carry on his business in the same manner as if the renewal of the licence had not been refused.

against refusal
to renew
licence.

90. Where a justices' licence is forfeited on or in pursuance of a conviction for an offence, and an appeal is duly made against the conviction, the court by whom the conviction was made may, by order, grant a temporary licence to be in force during the pendency of the appeal upon such conditions as they think just.

Temporary
licence pend-
ing appeal
against con-
viction.

REGISTRATION OF CLUBS.

91.—(1) The secretary of every club which occupies a house or part of a house which is habitually used for the purposes of a club, and in which any intoxicating liquor is supplied to members or their guests, or any other premises which are habitually so used, and in which any intoxicating liquor is so supplied, shall cause the club to be registered in manner provided by this Act.

Obligation to
register clubs.

(2) The registration of a club under this Act shall not constitute the club premises licensed premises, or authorise any sale of intoxicating liquor therein which would otherwise be illegal.

92.—(1) The clerk to the justices of every petty sessional division shall keep a register of all such clubs within the division.

Mode of regis-
tration of
clubs.

(2) The register shall be in a form prescribed by the Secretary of State, and shall contain—

- (a) the name and objects of the club;
- (b) the address of the club;
- (c) the name of the secretary;
- (d) the number of members;
- (e) the rules of the club relating to—
 - (i) the election of members and the admission of temporary and honorary members and of guests;
 - (ii) the terms of subscription and entrance fee, if any;
 - (iii) the cessation of membership;
 - (iv) the hours of opening and closing; and
 - (v) the mode of altering the rules.

(3) The secretary of every such club shall, in the month of January in every year, furnish to the clerk to the justices a return, signed by the secretary, giving the above-mentioned particulars, together with a signed statement that there is kept

upon the club premises a register of the names and addresses of the club members, and a record of the latest payment of their subscriptions.

(4) Where a new club which requires to be registered under this Act is about to be opened, the secretary shall, before the opening of the club, furnish to the clerk to the justices a return, signed by the secretary, giving the above-mentioned particulars.

(5) The clerk to the justices shall keep the register of clubs corrected up to date in accordance with the returns furnished by the secretaries, and the register shall, at all reasonable hours, be open to the inspection of an inspector or superintendent of police, or an officer of customs and excise, without payment, and of any other person on payment of a fee not exceeding one shilling.

(6) A fee of five shillings shall be payable to the clerk to the justices on each return made by the secretary of a club.

(7) In the application of this section to Oxford, the Registrar of the Court of the Chancellor of the University shall, in the case of any club mainly composed of members past or present of the University, be substituted for the clerk to the justices.

Penalty for
supplying or
keeping liquor
in unregistered
club.

93.—(1) If any intoxicating liquor is supplied or sold to any member or guest on the premises of an unregistered club, the person supplying or selling the liquor, and every person authorising the supply or sale of the liquor, shall be liable to imprisonment, with or without hard labour, for a term not exceeding one month, or to a fine not exceeding fifty pounds, or to both.

(2) If any intoxicating liquor is kept for supply or sale on the premises of an unregistered club, every officer and member of the club shall be liable to a fine not exceeding five pounds, unless he proves to the satisfaction of the court that the liquor was so kept without his knowledge or consent.

Supply of
liquor in clubs
for consump-
tion off the
premises.

94. Intoxicating liquor shall not be supplied in a club for consumption off the premises except to a member on the premises; and, if any person supplies or obtains any intoxicating liquor in contravention of the provisions of this section, he shall be liable to a fine not exceeding ten pounds.

Striking off
club register.

95.—(1) Where a club has been registered in pursuance of this Act, a court of summary jurisdiction on complaint in writing by any person may, if they think fit, make an order directing the club to be struck off the register on all or any of the following grounds, namely—

- (a) that the club has ceased to exist, or that the number of members is less than twenty-five; or
- (b) that it is not conducted in good faith as a club, or that it is kept or habitually used for any unlawful purpose; or
- (c) that there is frequent drunkenness on the club premises; or

- (d) that illegal sales of intoxicating liquor have taken place on the club premises; or
- (e) that persons who are not members are habitually admitted to the club merely for the purpose of obtaining intoxicating liquor; or
- (f) that the club occupies premises in respect of which, within twelve months next preceding the formation of the club, a justices' licence has been forfeited or the renewal of a justices' licence has been refused, or in respect of which an order has been made that they shall not be used for the purposes of a club; or
- (g) that persons are habitually admitted as members without an interval of at least forty-eight hours between their nomination and admission; or
- (h) that the supply of intoxicating liquor to the club is not under the control of the members or the committee appointed by the members.

(2) For the purpose of determining whether a club is conducted in good faith as a club, the court shall have regard to the nature of the premises occupied by the club.

(3) If the court grant a summons on the complaint, the summons shall be served on the secretary and on such other person, if any, as the court may direct.

(4) Where the court make an order striking a club off the register the court may, if they think fit, by that order further direct that the premises occupied by the club shall not be used for the purposes of any club which requires to be registered under this Act for a specified period, which may extend, in case of a first order, to twelve months, or, in case of a second or subsequent order, to five years:

Provided that any such direction may, for good cause shown, be subsequently cancelled or varied by the court.

(5) In the application of this section to Oxford, the court of summary jurisdiction shall, in the case of any club mainly composed of members past or present of the University, be the Court of the Chancellor of the University sitting and acting under the Oxford University (Justices) Act, 1886 :

49 & 50 Vict.
c. 31.

Provided that that court shall not have power to make an order that premises occupied by any such club shall not be used for the purposes of a club.

96.—(1) If a justice of the peace is satisfied by information on oath that there is reasonable ground for supposing that any registered club is so managed or carried on as to constitute a ground for striking it off the register, or that any intoxicating liquor is sold or supplied, or kept for sale or supply, on the premises of an unregistered club, he may grant a search warrant to any constable named therein.

Search warrant
to enter club.

(2) A search warrant granted under this section shall authorise the constable named therein to enter the club, if need

be by force, and to inspect the premises of the club, to take the names and addresses of any persons found therein, and to seize any books and papers relating to the business of the club.

Penalty for
false returns,
&c. by club
secretary.

97.—(1) If the secretary of any registered club or any club which requires to be registered under this Act omits to make any return required by this Act, he shall be liable to a fine not exceeding twenty pounds, and in the case of a second or subsequent offence to imprisonment, with or without hard labour, for a term not exceeding one month, or to a fine not exceeding fifty pounds, or to both.

(2) If the secretary of any such club knowingly makes a return which is false in any material particular, he shall be liable to imprisonment, with or without hard labour, for a term not exceeding three months, or to a fine not exceeding fifty pounds, or to both.

Application to
London of
provisions as
to clubs.

98. In the application to London of the provisions of this Act relating to the registration of clubs, the clerk to a metropolitan police court as respects any place within the jurisdiction of a metropolitan police court, and the clerk of special sessions as respects the city of London, shall be substituted for the clerk to the justices.

LEGAL PROCEEDINGS.

Summary
prosecution for
offences.

99.—(1) Except as otherwise expressly provided, any offence under this Act may be prosecuted, and every fine or forfeiture may be recovered and enforced, in manner provided by the Summary Jurisdiction Acts.

(2) If any person feels aggrieved by an order or conviction made by a court of summary jurisdiction under this Act, he may appeal therefrom to quarter sessions.

Minimum
penalty on
second or
subsequent
conviction.

100. Where the holder of a justices' licence is convicted of any offence under this Act, the court shall not, except in the case of a first offence, impose a penalty less than a fine of twenty shillings, or in cases where any other Act makes provision for a minimum penalty, less than the minimum penalty so provided.

Conviction
after five years
not to increase
penalty.

101. A conviction for any offence under this Act shall not after five years from the date of the conviction be receivable in evidence against any person for the purpose of subjecting him to an increased fine or to any forfeiture.

Conviction &c.
not to be
quashed for
want of form,
or removed by
certiorari.

102. No conviction or order made in pursuance of this Act, originally or on appeal, relative to any offence, penalty, fine, forfeiture or summary order, shall be quashed for want of form, or, if made by a court of summary jurisdiction, be removed by certiorari or otherwise, either at the instance of the Crown or of any private party, into any superior court.

103.—(1) Any officer appointed by the Commissioners of Customs and Excise may sue for any fines under this Act, and, when so sued for, any fines which may be recovered shall be applied in the same manner in which excise penalties are for the time being applicable by law. Penalty not to be deemed excise penalty in ordinary cases.

(2) Subject to the foregoing provision, fines and forfeitures under this Act shall not, for the purposes of any Act respecting the application of those fines, or the costs, charges, and expenses attending proceedings for the recovery of those fines or forfeitures, be deemed to be penalties, fines, or forfeitures under any Act relating to Excise.

104. Where fines imposed by a court of summary jurisdiction for offences under this Act or under any provisions of the Licensing Acts, 1828 to 1906, which are not repealed by this Act, are not carried to the pension fund of the police area in which the offence is committed under section sixteen of the Police Act, 1890, the court imposing the fine may direct any part, not exceeding a moiety, of the fine to be paid to that pension fund. Application of fines. 53 & 54 Vict. c. 45.

105. All forfeitures under this Act shall be sold or otherwise disposed of in such manner as the court may direct, and the proceeds of the sale or disposal (if any) shall be applied in the like manner as fines, but the court may direct that the proceeds may be applied in the first instance in paying the expenses of and incidental to any search and seizure which resulted in the forfeiture. Application of forfeitures.

SUPPLEMENTAL.

106. Where a justices' licence is forfeited in pursuance of this Act or becomes void under any of the provisions of this Act, any excise licence for the sale of intoxicating liquors granted by the Commissioners of Customs and Excise to the holder of the justices' licence in pursuance of that licence shall be void. Avoidance of excise licence on forfeiture of justices' licence.

107.—(1) For all the purposes of this Act any pier, quay, jetty, mole, or work extending from any place within the jurisdiction of any licensing justices or court of summary jurisdiction into or over any part of the sea, or any part of a river within the ebb and flow of the tide, shall be deemed to be within the jurisdiction of the justices or court. Jurisdiction of licensing justices and court of summary jurisdiction.

(2) For the purpose of jurisdiction in any proceeding under this Act, any river or water which runs between or forms the boundary of two or more licensing districts, or of the jurisdiction of two or more courts of summary jurisdiction, shall be deemed to be wholly within each of those licensing districts or the jurisdiction of each of those courts.

(3) Nothing in this section shall limit any jurisdiction which licensing justices or a court of summary jurisdiction have by

42 & 43 Vict.
c. 49.

virtue of section forty-six of the Summary Jurisdiction Act, 1879, or otherwise.

Service of
notices.

108.—(1) Subject to any express provisions of this Act, all notices or documents required under this Act to be given, served, or sent, may be served personally or sent by post :

Provided that the copy of the notice of an application for an ordinary removal to be served on an owner and the holder of the licence, and any notice of any offence to be given or sent to the owner of any licensed premises, and any notice with reference to an application for a new justices' licence to be given to an overseer or the superintendent of police must, if sent by post, be sent by registered letter.

(2) Where the owner or any other person interested in any licensed premises is entitled to receive notice of a conviction under this Act, he shall supply his address to the clerk or other person required to send the notice, and any notice sent to the address so supplied shall be deemed to be duly given ; but, if no address is supplied under this provision, any such notice shall be deemed to be duly given if sent to any address which the clerk or other person who sends the notice believes, in the exercise of his discretion, to be the address of the person to whom the notice is to be sent.

Calculation of
population.

109. The population of any area for the purposes of this Act shall be ascertained according to the last published census for the time being.

Definitions.

110. In this Act, unless the context otherwise requires,—

The expression "intoxicating liquor" means spirits, wine, beer, porter, cider, perry, and sweets, and any fermented, distilled, or spirituous liquor which cannot, according to any law for the time being in force, be legally sold without an excise licence :

The expression "justices' licence" means a justices' licence for the sale of any intoxicating liquor granted in accordance with this Act :

The expression "justices' on-licence" means a justices' licence for the sale of any intoxicating liquor for consumption on the premises :

The expression "justices' off-licence" means a justices' licence for the sale of any intoxicating liquor not to be consumed on the premises :

The expression "licensed premises" means premises in respect of which a justices' licence has been granted and is in force :

The expression "sale by retail" in respect of any intoxicating liquor means the sale of that liquor in such quantities as is declared to be sale by retail by any Acts relating to the sale of intoxicating liquors, and any expression referring to sale by retail shall be construed accordingly :

- The expression “county” includes any riding, part, or division of a county having a separate commission of the peace and a separate court of quarter sessions:

For the purpose of the provisions of this Act as to appeals from the refusal of licensing justices to grant a renewal, transfer, or special removal of a justices’ licence, the area of the county shall be deemed to include any borough, or any part thereof, which is locally situated in the county, and for the purpose of the powers and duties of quarter sessions as compensation authority, the area of the county shall be deemed to include any borough, not being a county borough, which is locally situated in the county:

For the purpose of this provision, the expression “borough” includes boroughs which are counties of cities or towns:

The expression “quarter sessions” means court of quarter sessions:

The expression “secretary” in relation to a club includes any officer of the club or other person performing the duties of a secretary, and, in the case of a proprietary club where there is no secretary, the proprietor of the club:

The expression “unregistered club” means a club which requires to be registered under this Act, but is not so registered, or which has been struck off the register of clubs.

EXEMPTIONS AND SAVINGS.

111.—(1) Notwithstanding anything in this Act, a justices’ licence shall not be required for an excise licence taken out by a spirit dealer or wine dealer authorising him to sell spirits or wine by retail for consumption off the premises in premises which are exclusively used for the sale of intoxicating liquors, or of intoxicating liquors and mineral waters or other non-intoxicating drinks, and which have no internal communication with the premises of any person who is carrying on any other trade or business. Exemptions and savings.

(2) Nothing in this Act shall affect or apply to—

- (a) the privileges enjoyed at the date of the passing of this Act by any university in England, or the respective chancellors or scholars of the same, or their successors, or by any person to whom any privileges enjoyed by any such university chancellors or scholars have been transferred in pursuance of any Act of Parliament:
- (b) the privileges enjoyed at the date of the passing of this Act by the mayor or burgesses of the borough of St. Alban’s in the county of Hertford, or their successors:

- (c) the exemption from the obligation to take out a justices' licence or an excise licence enjoyed at the date of the passing of this Act by the company of the master, wardens, and commonalty of vintners of the city of London :

Provided that it is hereby declared that the exemption enjoyed by the company does not extend to those freemen of the company who have obtained the freedom by redemption only :

- (d) the sale of spruce or black beer :
- (e) the sale of intoxicating liquor by proprietors of theatres in pursuance of the Acts in that behalf :
- (f) the sale of intoxicating liquor in passenger vessels in pursuance of the Acts in that behalf :
- (g) except as expressly provided by this Act, the sale of intoxicating liquor on special occasions in pursuance of any statutory provision for the purpose :
- (h) the sale of medicated or methylated spirits, or spirits made up in medicine and sold by medical practitioners or chemists and druggists :
- (i) the sale of intoxicating liquor by wholesale :
- (k) any penalties recoverable by or on behalf of the Commissioners of Customs and Excise, or any laws relating to the Excise :
- (l) the sale of spirits in canteens in pursuance of any Act regulating the same ; and, notwithstanding any enactment to the contrary, it shall not be necessary for a person holding a canteen under the authority of a Secretary of State or of the Admiralty to obtain a justices' licence to enable him to obtain or hold any excise licence for the sale of any intoxicating liquor, and an excise licence may be granted to any such person accordingly ; or
- (m) the sale of intoxicating liquor for consumption on a railway restaurant car in pursuance of the Acts in that behalf.

REPEAL, SHORT TITLE, COMMENCEMENT, AND EXTENT.

Repeal.

112. The enactments mentioned in the Seventh Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule :

Provided that—

- (1) This repeal shall not affect any rule or form having effect under any enactment so repealed, and any such rule or form in force at the commencement of this Act shall continue to be in force, and may be repealed, altered, or amended as if it had been made under this Act ; and

- (2) Any penalty may be recovered and any offence may be prosecuted under any provisions of the Licensing Acts, 1828 to 1906, which are not repealed by this Act in the same manner as penalties and fines may be recovered and offences prosecuted under this Act, and, for the purpose of interpreting or carrying out those provisions, they shall be construed with or deemed to be part of this Act in the same manner and to the same extent as they were construed with, or were part of, any Act or enactment repealed by this Act; and
- (3) Any document referring to any Act or enactment hereby repealed shall be construed to refer to this Act or to the corresponding enactment of this Act; and
- (4) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

52 & 53 Vict
c. 63.

113.—(1) This Act may be cited as the Licensing (Consolidation) Act, 1910.

(2) This Act shall come into operation on the first day of January nineteen hundred and eleven.

(3) This Act shall not extend to Scotland or Ireland.

Short title,
commence-
ment, and
extent.

SCHEDULES.

FIRST SCHEDULE.

Section 17.

FIRST PART.

DESCRIPTION OF OLD OFF-LICENCES.

Justices' off-licences for the sale of wine, spirits, liqueurs, sweets, or cider which were in force and held by the applicant on the twenty-fifth day of June nineteen hundred and two, including any licences granted by way of renewal thereof from time to time to the applicant.

SECOND PART.

SPECIFIED GROUNDS.

(1) The ground that the applicant has failed to produce satisfactory evidence of good character.

(2) The ground that the house or shop in respect of which a licence is sought or any adjacent house or shop owned or occupied by the

applicant is of a disorderly character, or frequented by thieves, prostitutes, or persons of bad character.

(3) The ground that the applicant having previously held a licence for the sale of wine, spirits, beer, or cider, the same has been forfeited for his misconduct, or that he has, through misconduct, been at any time previously adjudged disqualified from receiving any such licence, or from selling any of the said articles.

(4) The ground that the applicant, or the house in respect of which he applies, is not duly qualified as by law is required.

(5) The ground that the applicant has sold surreptitiously under the licence or has assisted in concealing or misrepresenting the nature of goods sold under the licence.

(6) The ground that the applicant has, in any other way, in the opinion of the licensing justices, been guilty of misconduct in the management of his business under the licence.

Sections 16, 18.

SECOND SCHEDULE.

FIRST PART.

DESCRIPTION OF OLD ON-LICENCES.

Justices' on-licences which were in force on the fifteenth day of August nineteen hundred and four, including—

- (a) licences granted by way of renewal of a licence so in force ; and
- (b) licences which, though not in force at that date, had been before that date provisionally granted and confirmed under section twenty-two of the Licensing Act, 1874, in cases where the provisional grant and order for confirmation was subsequently declared final,

whether the licence continues to be held by the same person or has been or may be transferred to any other person or persons.

For the purpose of the foregoing description of old on-licences, the expression "on-licence" does not include licences for the sale of wine alone or sweets alone.

Old on-licences for the sale of beer or cider, with or without wine, which were granted in respect of premises for which a corresponding excise licence was in force on the first day of May eighteen hundred and sixty-nine (including licences granted by way of renewal of such a licence, whether the licence continues to be held by the same person, or has been or may be transferred to any other person) are in this Schedule referred to as old beerhouse licences.

SECOND PART.

SPECIFIED GROUNDS.

(A) In the case of old on-licences which are old beerhouse licences—

- (1) the ground that the applicant has failed to produce satisfactory evidence of good character :
- (2) the ground that the house or shop in respect of which a licence is sought, or any adjacent house or shop owned or occupied by the applicant is of a disorderly character, or frequented by thieves, prostitutes, or persons of bad character :

- (3) the ground that the applicant having previously held a licence for the sale of wine, spirits, beer, or cider, the same has been forfeited for his misconduct, or that he has through misconduct been at any time previously adjudged disqualified from receiving any such licence, or from selling any of the said articles :
- (4) the ground that the applicant, or the house in respect of which he applies, is not duly qualified as by law is required.
- (B) In the case of any old on-licences other than old beerhouse licences—
 - (1) the ground that the licensed premises have been ill-conducted or are structurally deficient or structurally unsuitable :
 - (2) grounds connected with the character or fitness of the proposed holder of the licence :
 - (3) the ground that the renewal of the licence would be void.

Supplemental.

If the licensing justices refuse to renew an old on-licence on the ground that the holder of the licence has persistently and unreasonably refused to supply suitable refreshment (other than intoxicating liquor) at a reasonable price, or on the ground that the holder of the licence has failed to fulfil any reasonable undertaking given to the justices on the grant or renewal of the licence, the justices shall be deemed to have refused the licence on the ground that the premises had been ill-conducted.

THIRD SCHEDULE.

Section 21.

PART I.

SCALE OF MAXIMUM CHARGES FOR COMPENSATION LEVY.

Annual Value of Premises to be taken as for the purpose of the Publican's Excise Licence Duty.							Maximum Rate of Charge.
£	£						£ s. d.
Under	15	-	-	-	-	-	1 0 0
15 and under	20	-	-	-	-	-	2 0 0
20 „ „	25	-	-	-	-	-	3 0 0
25 „ „	30	-	-	-	-	-	4 0 0
30 „ „	40	-	-	-	-	-	6 0 0
40 „ „	50	-	-	-	-	-	10 0 0
50 „ „	100	-	-	-	-	-	15 0 0

Annual Value of Premises to be taken as for the purpose of the Publican's Excise Licence Duty.							Maximum Rate of Charge.		
£	£						£	s.	d.
100 and under	200	-	-	-	-	-	20	0	0
200 „ „	300	-	-	-	-	-	30	0	0
300 „ „	400	-	-	-	-	-	40	0	0
400 „ „	500	-	-	-	-	-	50	0	0
500 „ „	600	-	-	-	-	-	60	0	0
600 „ „	700	-	-	-	-	-	70	0	0
700 „ „	800	-	-	-	-	-	80	0	0
800 „ „	900	-	-	-	-	-	90	0	0
900 and over	-	-	-	-	-	-	100	0	0

The rate of charge in the case of an hotel as defined for the purpose of this provision, shall be one-third of that charged in other cases, and in the case of any licensed premises which are certified by the licensing justices on the application of the holder of the licence to be used only as public gardens, picture galleries, exhibitions, places of public or private entertainment, railway refreshment rooms, bona fide restaurants or eating houses, or for any other purpose to which the holding of a licence is merely auxiliary, such rate, not less than one-third of that charged in other cases, as the justices think proper under the circumstances.

For the purposes of this provision, an hotel means premises of the value of fifty pounds and upwards, which are proved to the satisfaction of the Commissioners of Customs and Excise to be structurally adapted for use as an inn or hotel for the reception of guests and travellers desirous of dwelling therein, and to be mainly so used, and in the case of which either no portion of the premises is set apart and used as an ordinary public-house for the sale and consumption therein of liquors, or the annual value of any portion so set apart and used does not in the opinion of the Commissioners of Customs and Excise exceed twenty-five pounds.

PART II.

SCALE OF DEDUCTIONS IN RESPECT OF COMPENSATION LEVY.

A person whose unexpired term does not exceed		1 year	{ may deduct a sum equal to - - }	100 per cent. of the charge.
„	„	2 years	„	88 „
„	„	3 „	„	82 „
„	„	4 „	„	76 „
„	„	5 „	„	70 „
„	„	6 „	„	65 „
„	„	7 „	„	60 „
„	„	8 „	„	55 „
„	„	9 „	„	50 „
„	„	10 „	„	45 „
„	„	11 „	„	41 „
„	„	12 „	„	37 „
„	„	13 „	„	33 „

A person whose unexpired term does not exceed	14 years	{ may deduct a sum equal to - }	29	per cent. of the charge.
" " "	15 "	" "	25	" "
" " "	16 "	" "	23	" "
" " "	17 "	" "	21	" "
" " "	18 "	" "	19	" "
" " "	19 "	" "	17	" "
" " "	20 "	" "	15	" "
" " "	21 "	" "	14	" "
" " "	22 "	" "	13	" "
" " "	23 "	" "	12	" "
" " "	24 "	" "	11	" "
" " "	25 "	" "	10	" "
„ exceeds 25 but does not exceed	30 years	" "	7	" "
30	35	" "	6	" "
35	40	" "	5	" "
40	45	" "	4	" "
45	50	" "	3	" "
50	55	" "	2	" "
55	60	" "	1	" "

But the amount deducted shall in no case exceed half the rent.

FOURTH SCHEDULE.

Section 23.

CASES IN WHICH AND PERSONS TO WHOM A TRANSFER MAY BE GRANTED.

Death of the holder of the licence -	The representatives of the holder of the licence or the new tenant or occupier of the premises.
Incapacity of the holder of the licence to carry on business under the licence owing to sickness or other infirmity.	The assigns of the holder of the licence or the new tenant or occupier of the premises.
Bankruptcy of the holder of the licence.	The trustee of the bankrupt or the new tenant or occupier of the premises.
Occupation of premises given up by the holder of the licence or his representatives.	The new tenant or occupier of the premises, or the person to whom the representatives or assigns have, by sale or otherwise, bona fide conveyed or made over the interest in the premises.
Wilful omission or neglect of the occupier of the premises who is about to quit the premises to apply for a renewal of the licence.	The new tenant or occupier.
Cases where the owner of the licensed premises or some person on his behalf on the forfeiture of the licence, or the personal disqualification of the holder of the licence, has obtained temporary authority under this Act to carry on business until the next transfer sessions and applies for a transfer at those sessions.	The owner or any person applying on his behalf, and the transfer may be granted as if the licence to be transferred were, notwithstanding forfeiture, still valid.

Sections 37, 38.

FIFTH SCHEDULE.

PART I.

ANNUAL VALUE REQUIRED IN THE CASE OF JUSTICES'
ON-LICENCE IN ORDINARY CASES.

Premises in respect of which a justices' on-licence was not in force on the tenth day of August eighteen hundred and seventy-two.

The required annual value in the case of these premises is—

- (a) where the premises are situated in the administrative county of London, or within the four-mile radius from Charing Cross, or within any town containing a population of not less than one hundred thousand, fifty pounds, or, if the licence is not a licence for the sale of spirits, thirty pounds; and
- (b) where the premises are situated elsewhere and within a town containing a population of not less than ten thousand, thirty pounds, or, if the licence is not a licence for the sale of spirits, twenty pounds; and
- (c) where the premises are situated otherwise than as aforesaid, fifteen pounds, or, if the licence is not a licence for the sale of spirits, twelve pounds.

PART II.

ANNUAL VALUE REQUIRED IN CERTAIN EXCEPTED CASES.

1. Premises to which a justices' on-licence for the sale of beer or cider was attached on the tenth day of August eighteen hundred and seventy-two.

The required annual value in the case of these premises is—

- (a) where the premises are situated in the administrative county of London, or within any town containing a population exceeding ten thousand, or within a mile, to be measured by the nearest public street or path, from any polling place used at the last election for any town having the like population and returning a member of Parliament, fifteen pounds; and
- (b) where the premises are situated in any town or parish the population of which exceeds two thousand five hundred, but does not exceed ten thousand, or within a mile, to be measured by the nearest public street or path, from any polling place used at the last election for any town having the like population and returning a member of Parliament, eleven pounds; and
- (c) where the premises are situated otherwise than as aforesaid, eight pounds.

2. Refreshment houses to which a justices' on-licence for the sale of wine was attached on the tenth day of August eighteen hundred and seventy-two.

The required annual value in the case of these premises is—

- (a) where the house is situated in any town containing a population exceeding ten thousand, twenty pounds; and
- (b) where the house is situated elsewhere, ten pounds.

PART III.

ANNUAL VALUE REQUIRED IN CASE OF OFF-LICENCES.

Premises in respect of which a justices' off-licence for the sale of beer or cider is granted.

The required value in the case of these premises is the same as that set out in paragraph 1 of Part II. of this Schedule.

SIXTH SCHEDULE.

Sections 54, 56.

GENERAL CLOSING HOURS.

1. ENGLAND.

A.—Premises within the Metropolis.

(a) On Saturday night from midnight until one o'clock in the afternoon on the following Sunday ; and

(b) On Sunday afternoon from three o'clock until six o'clock ; and

(c) On Sunday night from eleven o'clock until five o'clock on the following morning ; and

(d) On all other days from half an hour after midnight until five o'clock on the same morning.

B.—Premises beyond the Metropolis but in the Metropolitan Police District, and Premises in a Town or Populous Place.

(a) On Saturday night from eleven o'clock until half an hour after noon on the following Sunday ; and

(b) On Sunday afternoon from half-past two o'clock until six o'clock ; and

(c) On Sunday night from ten o'clock until six o'clock on the following morning ; and

(d) On the nights of all other days from eleven o'clock until six o'clock on the following morning.

C.—Premises not in the Metropolis or Metropolitan Police District, or in a Town or Populous Place.

(a) On Saturday night from ten o'clock until half an hour after noon on the following Sunday ; and

(b) On Sunday afternoon from half past two o'clock until six o'clock ; and

(c) On Sunday night from ten o'clock until six o'clock on the following morning ; and

(d) On the nights of all other days from ten o'clock until six o'clock on the following morning.

2. WALES.

A.—Premises in a Town or Populous Place.

(a) On Saturday night from eleven o'clock until six o'clock on the following Monday morning ; and

(b) On the nights of all days in the week except Saturday and Sunday from eleven o'clock until six o'clock on the following morning.

B.—*Premises not in a Town or Populous Place.*

(a) On Saturday night from ten o'clock until six o'clock on the following Monday morning ; and

(b) On the nights of all days in the week except Saturday and Sunday from ten o'clock until six o'clock on the following morning.

SPECIAL PROVISIONS.

1. Both in England and Wales the general closing hours on Christmas Day and Good Friday and the days preceding Christmas Day and Good Friday respectively, shall be the same as the general closing hours in England on Sunday and Saturday, Sunday being taken to correspond to Christmas Day or Good Friday, and Saturday to the day preceding Christmas Day or Good Friday ; but this provision shall not alter the general closing hours on Sunday when Christmas Day immediately precedes or succeeds Sunday.

2. For the purposes of this Schedule—

(a) “The metropolis” means the administrative county of London, with the addition of any area which, though not within the administrative county of London, is within the four-mile radius from Charing Cross :

(b) “Town” means a borough or urban district, and any collection of houses adjacent to a town as so defined shall be deemed to be part of the town after it has been declared so to be by an order of the confirming authority having jurisdiction in the place where the houses are situated : Provided that no borough or urban district, whether including any such adjacent houses or not, shall be deemed a town, unless it contains one thousand inhabitants :

(c) “Populous place” means any area with a population of not less than one thousand, which by reason of the density of its population, the confirming authority of the county by order determine to be a populous place.

Any order of the confirming authority of the county for the purposes of this Schedule may be made from time to time at a meeting specially convened for the purpose in manner provided by regulations made by that authority, or, in default of those regulations, by the clerk of the peace, and any such meeting may be adjourned :

Provided that an order restrictive of a previous order shall not be made except on a revision after the publication of a census.

Any order of the confirming authority of the county for the purpose of this Schedule with respect to a town or populous place, shall specify the boundaries of the town or populous place.

As soon as may be after the publication of each census, the confirming authority of the county shall, at a meeting to be specially convened for the purpose, revise orders then in force within their jurisdiction, and may alter or cancel any of those orders or may make such further orders, if any, as they shall deem necessary to give effect to the provisions of this Act.

SEVENTH SCHEDULE.

Section 112.

ENACTMENTS REPEALED AS TO ENGLAND AND WALES.

Session and Chapter.	Short Title.	Extent of Repeal.
9 Geo. 4. c. 61.	The Alehouse Act, 1828	The whole Act.
5 & 6 Vict. c. 44.	The Licensing Act, 1842	Sections one to three and section six.
32 & 33 Vict. c. 27.	The Wine and Beerhouse Act, 1869.	The whole Act.
33 & 34 Vict. c. 29.	The Wine and Beerhouse Amendment Act, 1870.	The whole Act.
33 & 34 Vict. c. 111.	The Beerhouse Act, 1870	The whole Act.
35 & 36 Vict. c. 94.	The Licensing Act, 1872	The whole Act, except sections one, two, twelve, twenty-seven, twenty-eight, thirty-nine, section forty-six, & so far as it applies to excise licences, the proviso to section seventy-five, and sections seventy-six to ninety.
37 & 38 Vict. c. 49.	The Licensing Act, 1874	The whole Act, except sections one, eleven, nineteen, and the definition of "occasional licence" in section thirty-two.
44 & 45 Vict. c. 61.	The Sunday Closing (Wales) Act, 1881.	The whole Act.
47 & 48 Vict. c. 29.	The Licensing (Evidence) Act, 1884.	The whole Act.
1 Edw. 7. c. 27.	The Intoxicating Liquors (Sale to Children) Act, 1901.	The whole Act.
2 Edw. 7. c. 28.	The Licensing Act, 1902	Section four, sections nine to twenty-one, and sections twenty-three to thirty-two.
4 Edw. 7. c. 23.	The Licensing Act, 1904	The whole Act.
6 Edw. 7. c. 42.	The Licensing Act, 1906	The whole Act.